U. S. DEPARTMENT OF ENERGY

STRATEGIC PETROLEUM RESERVE
PROJECT MANAGEMENT OFFICE

NEW ORLEANS, LA

REQUEST FOR PROPOSAL

DE-RP96-22PO00001

EXCHANGE OF
THIRTY TWO (32) MILLION BARRELS
OF SOUR
CRUDE OIL

FROM THE

STRATEGIC PETROLEUM RESERVE

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PART I - THE SCHEDULE

SECTION A

COVER LETTER

Department of Energy
Strategic Petroleum Reserve Project Management Office
900 Commerce East
New Orleans, Louisiana 70123

November 24, 2021

Prospective Offerors:

The Department of Energy, Strategic Petroleum Reserve Project Management Office (SPRPMO), located at 900 Commerce Road East, New Orleans, Louisiana, is soliciting an exchange of up to 32,000,000 barrels of sour crude oil.

You are invited to submit a proposal. You are to base your proposal for this requirement on the information provided in the attached Request for Proposal (RFP), DE-RP96-22PO00001. The proposal preparation instructions are described in Part IV, Section L of the RFP. **Submission of proposals will only be accepted via email and must be received not later than 10:00 a.m., Central Time, on December 6, 2021.** (Refer to Part IV, Section L.4. of the RFP.) In order to participate in Federal procurements, potential offerors must register in the System for Award Management (SAM) at https://www.sam.gov/.

The format for this solicitation is "negotiated," which allows the Government to discuss issues regarding crude exchange quantities, qualities, or any other provision of this solicitation. However, the Government may award a contract on the basis of initial offers received. Accordingly, each initial offer should be submitted on the most favorable terms which the Offeror can submit to the Government.

The solicitation is posted to the SPRPMO (http://www.spr.doe.gov) website. No hard copies of the solicitation will be made available. Prospective Offerors are responsible for regularly checking the website for updates, additional information, and changes or amendments to the RFP. **Questions and answers will be posted on the SPRPMO website daily.**

This solicitation does not commit the Department of Energy to award contract(s) to exchange crude oil. Offer preparation costs as a result of this solicitation shall not be borne by the Government.

Questions concerning the solicitation must be submitted via email to the Contract Specialist, Mary Catherine Roark, at mary.roark@spr.doe.gov and to the undersigned at kelly.gele@spr.doe.gov by 4:00 p.m., Central Time on December 2, 2021.

Sincerely,

Kelly M. Gele'
Contracting Officer

Attachment

PART I - THE SCHEDULE

SECTION B

SUPPLIES OR SERVICES AND PRICES

PART I – THE SCHEDULE

SECTION B

SUPPLIES OR SERVICES AND PRICES

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SECTION B

SUPPLIES OR SERVICES AND PRICES

B.1 INTRODUCTION

a. The Department of Energy (DOE), Strategic Petroleum Reserve Project Management Office (SPRPMO) is soliciting to perform an Exchange of up to 32,000,000 barrels total from the SPR with the following allocation for deliveries of Exchange Oil from the SPR and deliveries of Return Oil to the SPR in the table below:

Site	Exchange Volume Offered	Nominal Delivery Rate per Full Month (Bbls)	Exchange Delivery Period	Nominal Delivery Rate per Full Month (Bbls)	Return Period No. 1	Return Period No. 2	Return Period No. 3
Bryan Mound	10,000,000	3,000,000	12/16/21 - 3/30/22	2,000,000	1/1/23 -2/28/23	6/1/23 - 9/30/23	6/1/24 - 9/30/24
Big Hill	10,000,000	2,800,000	12/16/21 - 4/30/22	3,300,000	7/1/22 - 9/30/22	1/1/23 - 2/28/23	8/1/24 - 9/30/24
West Hackberry	7,000,000	2,800,000	12/16/21 - 12/31/21 2/1/22 - 4/30/22	1,700,000	7/1/22 - 8/31/22	7/1/23 - 9/1/23	6/1/24 - 9/30/24
Bayou Choctaw	5,000,000	1,400,000	12/16/21 - 3/30/22	1,400,000	9/1/23 - 9/30/23	6/1/24 - 9/30/24	N/A

See table on items B.6(d) and B.6(f) for delivery and receipt rates from and to the SPR sites. Offers will be accepted on a competitive basis and will be evaluated on the best value to the Government. See Sections B.5 and M. (Note: It is the intent of the SPR to facilitate delivery of Exchange Oil and receipt of Return Oil barrels to the same site as awarded. In the event that the site defined in this document is unable to deliver Exchange Oil or receive Return Oil for any reason, the DOE reserves the right to designate alternate location(s). In this event, DOE will compensate through adjustments to contract delivery quantities as determined by the Contracting Officer.)

b. RESERVED

c. The quality characteristics of the crude oil streams offered for sale are those cited in the **Strategic Petroleum Reserve Crude Oil Assays**.

This crude oil quality data is a weighted average composition of the specific caverns that comprise the streams offered for sale. Although a specific crude oil benchmark is referenced; SPR inventory contains a blend of domestic

and global crude including Isthmus, Urals, Alaskan North Slope, Arabian Light, Saharan, and Dubai with segregation by Sweet and Sour storage caverns. The SPR has observed H_2S concentration (which is found naturally in crude oil) greater than 10 ppm in liquid in some crude batches. Measurements of H_2S in vapor space can be orders of magnitude higher than in liquid and difficult to measure due to factors in handling, weather, etc. OSHA provides guidelines on appropriate safety precautions and equipment if crude is handled openly, spilled, or released to the atmosphere. Offerors are encouraged to review the Strategic Petroleum Reserve Crude Oil Assays for more detailed oil stream composition and specifics so that conditions (such as the presence of H_2S) are expected and communicated downstream.

Note: Each SPR stream offered will be a blended average of the sour stream at each site. As a result, actual representative samples are not available prior to deliveries. Please refer to **Strategic Petroleum Reserve Crude Oil Assays** which provides a weighted average composite profile of the stream.

Return Oil to be received at the SPR sites shall meet the specifications in Section J, Exhibit C. Acceptance of any Crude Oil offered for receipt into the SPR will be subject to the Contracting Officer's approval. Gravity and sulfur differentials will be used to determine quality adjustments for any Crude Oil delivered which varies from the quality specifications of the Crude Oil contracted. The Offeror is **required** to supply: the Sour Crude Oil Quality Checklist – Section J, Exhibit C-1.1 as applicable based upon Exchange Grade Crude Type indicated on Offer Form – Section J, Exhibit A.1. If the checklist and assay are not submitted with the bid package, the bid package would be considered incomplete. To preserve SPR cavern homogeneity and maintain overall integrity of its respective crude streams, only crude oils of similar composition are commingled in storage. Due to natural geothermic heating, crude oils that demonstrate high bubble point pressures (BPP) and high gas-oil ratios (GOR) produce increased vapor pressure at standard cavern storage temperatures. High BPP-GOR oils have the potential to impact the existing SPR oil inventory, increasing levels of light end gases (C_1-C_3) and greatly restricting immediate deliverability which is the critical mission of the SPR. Light ends may not be observed through analysis at ambient temperatures, but are entrained in certain crude types and released during storage. Lighter ends, Methane, Ethane and Propane are the single largest contributor to vapor pressure increase. Crude oils displaying C_1-C_3 volume percent outside of the required specifications and determined by the allowed methods listed in Section J, Exhibit C-1, will be considered outside of the SPR's acceptance criteria and deemed incompatible with existing SPR stocks. Blending heavier crudes with light end crudes may cause separation of the blend at

higher temperature, thus rendering the stream undeliverable. SPR reserves the right to reject any crude oil in order to ensure the quality of the crude oil received, stored, and maintained within the SPR.

d. The minimum offer quantity is 200,000 barrels for pipeline (150,000 at Bayou Choctaw), and 250,000 barrels for vessels. An Offeror may submit multiple offers, but total award(s) to any one Offeror will not exceed 10,000,000 barrels unless, and at the discretion of the DOE, all acceptable awards have been made and there are still barrels available.

B.2 DESCRIPTION

Delivery and Receipt of Crude Oil to and from the Government can be made to all four (4) SPR sites, subject to scheduling and meeting quality specs in Section J, Exhibit C-1.

B.3 DEFINITIONS

As used throughout this solicitation, the following terms shall have the meaning set forth below:

a. "Government," unless otherwise indicated in the text, means the United States Government.

b. "Strategic Petroleum Reserve" (SPR) means that DOE program established by Title I, Part B, of the Energy Policy and Conservation Act, 42 U.S.C. Section 6231, et seq.

c. "Contracting Officer" means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings on behalf of the Government.

d. "DOE" means the U.S. Department of Energy.

e. "Contractor" means the party contracting to perform all work to be done in pursuance of this contract.

f. "Offeror" is an entity that submits an offer pursuant to this solicitation.

g. "SPRPMO" means the Strategic Petroleum Reserve Project Management Office.

h. "API" means the American Petroleum Institute.

i. "Barrel" means 42 U.S. gallons or 231 cubic inches per gallon corrected to 60 degrees Fahrenheit.

j. "Crude Oil" means a mixture of hydrocarbons that existed in the liquid phase in natural underground reservoirs and remains liquid at atmospheric pressure after passing through surface separating facilities and is marketed or used as such.

k. "Affiliate" means associated business concerns or individuals if, directly or indirectly, (1) either one controls or can control the other, or (2) a third-party controls or can control both.

l. "FFPOCOL" means Fluor Federal Petroleum Operations Crude Oil Logistics group. Fluor Federal Petroleum Operations (FFPO) is the Management and Operating Contractor for the SPR.

m. "DOE M&O" means Department of Energy's Management and Operating Contractor, FFPO.

n. "Return Oil" means that portion of crude oil being returned to the Government.

o. "Exchange Oil" means that crude oil which is being delivered from the SPR.

p. "Ratable schedule" schedule that will be rated/distributed evenly in the period of performance stated in the Request for Proposal.

q. "Irrevocable Standby Letter of Credit" means a written commitment (by a depository institution located in and authorized to do business in any state of the United States or the District of Columbia, and authorized to issue letters of credit by the banking laws of the United States or any state of the United States or the District of Columbia) to pay all or part of a stated amount of money until the expiration date of the letter or upon presentation by the Contracting Officer (the beneficiary) of a written demand. The depository institution must be an account holder with the Federal Reserve Banking system and a participant (on line) in the Fed's Fedwire Deposit System Network funds transfer system. Neither the financial institution nor the Offeror/Contractor can revoke or condition the Letter of Credit.

r. "Static tank" Crude Oil tankage that is dedicated to a cargo destined for delivery to/from the SPR. This tank will not have crude being pumped into it

(active) from a source while deliveries are pumping out of it and into the SPR.

B.4. DETERMINATION OF RESPONSIBILITY

Upon request, Offeror(s) shall furnish sufficient information for the Contracting Officer to make a determination of responsibility. At a minimum, Offerors shall furnish enough data for the Contracting Officer to determine adequate financial capability. (See Section J, Exhibit I)

B.5 CONSIDERATION OF OFFERS

a. The Government shall award a contract resulting from this solicitation to a responsible Offeror whose offer conforming to the Request for Proposal will be most advantageous to the Government considering the evaluation factors in this solicitation and the preferences as described in B.1(a) and Section M. The primary factor determining winning bids will be the **the Contractor who can receive Exchange Oil the soonest followed by highest volume per site** as submitted by a conforming bidder on Section J, Exhibit A.1. In case of a tie, the offer with the later return period will be given preference.

Site	Exchange Volume Offered	Nominal Delivery Rate per Full Month (Bbls)	Exchange Delivery Period	Nominal Delivery Rate per Full Month (Bbls)	Return Period No. 1		Return Period No. 2		Return Period No. 3	
					Delivery Date Range	Prem. %	Delivery Date Range	Prem. %	Delivery Date Range	Prem. %
Bryan Mound	10,000,000	3,000,000	12/16/21 - 3/30/22	2,000,000	1/1/23 -2/28/23	3.9%	6/1/23 - 9/30/23	5.3%	6/1/24 - 9/30/24	8.6%
Big Hill	10,000,000	2,800,000	12/16/21 - 4/30/22	3,300,000	7/1/22 - 9/30/22	2.3%	1/1/23 - 2/28/23	3.9%	8/1/24 - 9/30/24	9.1%
West Hackberry	7,000,000	2,800,000	12/16/21 - 12/31/21 2/1/22 - 4/30/22	1,700,000	7/1/22 - 8/31/22	2.3%	7/1/23 - 9/1/23	5.6%	6/1/24 - 9/30/24	8.6%
Bayou Choctaw	5,000,000	1,400,000	12/16/21 - 3/30/22	1,400,000	9/1/23 - 9/30/23	6.1%	6/1/24 - 9/30/24	8.6%	N/A	N/A

b. Awards will be subject to the fixed Premium rates in the table above in the applicable return periods, as selected by Offeror as part of their submittal.. See Section M. Premium barrels are barrels to be returned to an SPR site in addition to base volume or awarded barrels. All Return Oil to SPR sites will include the awarded volume in addition to the premium. For example, if a Contractor is awarded 1,000,000 sour barrels at Bryan Mound and returns all 1,000,000 barrels by 2/28/2023 the total Return Oil barrels will be 1,000,000 plus a 39,000 sour barrel premium. The premium is calculated based on Net Standard Volume (NSV) barrels delivered from the SPR.

c. If the Exchange Oil volume offered is greater than the site monthly nominal delivery rate, remaining offer volume would apply to the following month in the delivery period. Should multiple Offerors request the same number of Exchange Oil barrels at the same SPR site in the same delivery month, each offer will be prorated to equal the volume that would be delivered, with remaining barrels allocated into the remaining months in the applicable period. Example 1, if an Offeror offers Exchange Oil at Bryan Mound at a volume of 2,000,000, and is both the highest volume awarded and can take barrels soonest, they will have scheduling priority for the entire award before all other Contractors. Example 2, if there are multiple Offerors of the same volume of Exchange Oil at an SPR site and can take the barrels soonest, priority between the multiple Contractors will be based on the highest premium offered (Return Period No.1/No.2/No.3) to the Government and prorated in the Exchange Oil delivery period.

d. Offerors are required to submit an Offer Guarantee and if awarded a Performance Guarantee will be required.

B.6 EXCHANGE OIL FROM THE SPR AND RETURN OIL FROM THE CONTRACTORS TO THE SPR

a. The availability of crude at each SPR site is listed below:

Site	Exchange Volume Offered	Nominal Delivery Rate per Full Month (Bbls)	Exchange Delivery Period	Nominal Delivery Rate per Full Month (Bbls)	Return Period No. 1		Return Period No. 2		Return Period No. 3	
					Delivery Date Range	Prem. %	Delivery Date Range	Prem. %	Delivery Date Range	Prem. %
Bryan Mound	10,000,000	3,000,000	12/16/21 - 3/30/22	2,000,000	1/1/23 -2/28/23	3.9%	6/1/23 - 9/30/23	5.3%	6/1/24 - 9/30/24	8.6%
Big Hill	10,000,000	2,800,000	12/16/21 - 4/30/22	3,300,000	7/1/22 - 9/30/22	2.3%	1/1/23 - 2/28/23	3.9%	8/1/24 - 9/30/24	9.1%
West Hackberry	7,000,000	2,800,000	12/16/21 - 12/31/21 2/1/22 - 4/30/22	1,700,000	7/1/22 - 8/31/22	2.3%	7/1/23 - 9/1/23	5.6%	6/1/24 - 9/30/24	8.6%
Bayou Choctaw	5,000,000	1,400,000	12/16/21 - 3/30/22	1,400,000	9/1/23 - 9/30/23	6.1%	6/1/24 - 9/30/24	8.6%	N/A	N/A

NOTE: Requests for early deliveries of Exchange Oil from the SPR sites will be accommodated to the maximum extent possible on a best efforts basis, terms subject to negotiations.

b. All costs associated with the transportation of the Exchange Oil and Return Oil to and from the SPR will be the responsibility of the Contractor, to include but not be limited to, tariffs, marine shipment, pipeline shipment, harbor, Oil Spill Liability Trust Fund taxes and environmental fees (including Texas Coastal protection fees), terminalling, pump-over fees, and tankage charges. To the extent H_2S scavenger is required on any shipment, said expense shall be paid by Contractor.

c. Within five business days after contract award, the Contractor shall submit a comprehensive ratable delivery schedule for the DOE Contracting Officer's approval providing the volume of Exchange Oil to be delivered from each SPR delivery location, and an outline of a ratable Return Oil schedule for return of oil from Contractor to the DOE. The delivery schedule may allow for economic delivery-size marine cargoes not less than 250,000 barrels for vessels and commercial pipeline cargo shipments not less than 200,000 barrels per cargo (150,000 for pipeline deliveries from Bayou Choctaw). The DOE must approve subsequent changes to the original schedule.

d. Maximum daily capability to Contractor of Exchange Oil from the SPR sites can be found below:

Crude Oil Stream	Mode of Delivery	Barrels per day Limit
Bryan Mound Sour		
	Freeport Docks	384,000
	Pipeline (Texas City)	300,000
Big Hill Sour		
	Pipeline (Sun)	456,000
	Vessel (Sun)	456,000
	Pipeline (P66 Beaumont)	432,000
West Hackberry Sour		
	Pipeline (Sun)	432,000
	Vessel (Sun)	432,000
	Pipeline (Lake Charles Meter Station)	200,000
Bayou Choctaw Sour		
	Pipeline (Redstick)	240,000

NOTE: Requests for early deliveries of Exchange Oil from the SPR sites will be accommodated to the maximum extent possible on a best efforts basis, terms subject to negotiations.

e. While the SPR can deliver and receive the site delivery volumes as stated in B.6(d) and B.6(f), **Offerors are cautioned that, due to commercial volumes at the terminals/pipelines, delivery time frames may be**

restricted. Offerors are responsible for ensuring that deliveries from and to the SPR can be accommodated through the applicable commercial terminals/pipelines. Offerors are also cautioned that gauging and or testing of all incoming Return Oil to determine SPR compatibility as noted in Section J, Exhibit C-1 will require the tank to be static. This should be a consideration of all Offerors when investigating terminals/pipelines and when submitting ratable schedules as noted in B.6(c).

f. Anticipated receipt capability of Return Oil at the SPR site is as follows:
NOTE: Receipt capability may decline as SPR caverns are filled.

Bryan Mound	140,000 barrels per day
Big Hill	225,000 barrels per day
West Hackberry	120,000 barrels per day
Bayou Choctaw	110,000 barrels per day

NOTE: Requests for early deliveries of Return Oil to the SPR sites will be accommodated to the maximum extent possible on a best efforts basis, terms subject to negotiations.

B.7 CLOSE-OUT RECONCILIATION

a. Within sixty days, barring any exceptions, after completion of the final scheduled delivery of Exchange Oil under the contract, any imbalances that may exist in the crude oil volumes agreed upon in the contract will be reconciled in the following manner:

If the SPR receives an amount of Exchange Oil that exceeds the contracted Return Oil delivery volume, the Government will attempt to reconcile the imbalance through cash payments or other alternate means, as available. If reconciliation is by cash payment, the Contractor shall invoice the DOE based on the cost value of the Exchange Oil on the date of the last delivery as annotated on the DD Form 250 (DD250).

If the Contractor delivers a total volume of Return Oil which is less than the contracted quantity, the DOE will invoice the Contractor for the undelivered amount based on the cost value of the Exchange Oil on the date of the last delivery as annotated on the DD250. If no payment is received by the due date specified on the invoice, the applicable amount owed will be drawn against the Contractor's Payment and Performance Letter of Credit as described in Section J, Exhibit I of this contract.

b. The Contractor shall return barrels owed to the Government plus the premium barrels as reflected by the table by return period, see table at section B.5(a).

NOTE: The net value of any oil imbalances will be derived from Argus Americas Crude Oil Price Assessment. If no published prices are available, a mutually agreed upon price will be negotiated. Should the parties fail to reach a negotiated price, the Government shall determine a fair and reasonable price.

B.8 ADJUSTMENT FOR CRUDE OIL QUALITY DIFFERENTIAL

a. A quality differential shall be computed on a cumulative weighted average basis of Exchange Oil delivered to the Contractor versus the Return Oil delivered to the DOE.

b. Laboratory tests for API Gravity and Sulfur mass percent, in accordance with tests methods listed in Section J, Exhibit C-1, shall be taken at custody points.

c. The allowable variations from the contracted quality are as follows:

Quality Characteristics	Sour	Sweet
API° Gravity	+/- 0.5	+/- 0.5
Sulfur - Mass, %	+/- 0.10	+/- 0.10

d. Monetary adjustments will be used to settle the quality differentials on Return Oil delivered to the SPR sites based on the following rates:

(1) API Gravity (Sour): Quality price adjustments will be applied to the amount of variation by which the API gravity of the Return Oil delivered to the SPR differs by more than plus or minus five-tenths of one degree API (+/-0.5˚ API) from the API gravity of the Exchange Oil delivered from the SPR to the Contractor. Adjustment for Return Oil delivered to the SPR will be in accordance with the GravCap table (Section J, Exhibit C-2). This will be on a cumulative weighted average basis.

(2) Sulfur (Sour): Quality price adjustments will be applied to the amount of variation by which the Sulfur mass percent of the Return Oil delivered to the SPR differs by more than plus or minus one-tenth of one percent of total Sulfur (+/- 0.10%) from the total Sulfur of the Exchange Oil delivered from the SPR to the Contractor. Adjustment

for Return Oil delivered to the SPR will be in accordance with the GravCap table (Section J, Exhibit C-2). This will be on a cumulative weighted average basis.

The quality adjustment owed to either the SPR or Contractor shall be paid in U.S. Dollars and adhere to all conditions of payment as noted in Section G.2.

e. There is a limit of 0.1% freewater on delivery to the SPR as measured either by Contractor's shore tank or on the vessel prior to discharge into tanks designated for DOE receipts. The inspector's gauges, witnessed by the DOE representative, either on the vessel at the dock facility or terminal shore tank, will be the method used to determine the final free water barrel amount. This clause is effective in conjunction with the Water and Sediment [Vol.%] maximum limit of 1.0% as stated in Section J, Exhibit C-1; e.g., a 500,000 barrel Return Oil delivery to the SPR is limited to 1.0% Water and Sediment (5,000 barrels), of which a maximum of 0.1% (500 barrels) can be freewater. Contractor is responsible for all costs associated with removal of excess freewater. The cargo will be rejected if freewater limitations are exceeded.

f. If the Return Oil being delivered to the SPR is outside the contractual limits and is determined to be unacceptable, the Government can either reject prior to receipt of oil into the SPR, or reserves the right to return the Return Oil delivered into SPR tankage, at the contractor's expense, to the vessel for marine receipts or to the Return Oil tankage for pipeline receipts.

g. RESERVED.

h. The quality characteristics of the Exchange Oil stream used for delivery in this exchange program are those cited in the DOE specifications sheet as seen in Section J, Exhibit C-1. SPR inventory contains a blend of domestic and global crude including Isthmus, Urals, Alaskan North Slope, Arabian Light, Saharan, and Dubai with segregation by Sweet and Sour storage caverns. The SPR has observed H_2S concentration (which is found naturally in crude oil) greater than 10 ppm in liquid in some crude batches. Measurements of H_2S in vapor space can be orders of magnitude higher than in liquid and difficult to measure due to factors in handling, such as weather. OSHA provides guidelines on appropriate safety precautions and equipment if crude is handled openly, spilled, or released to the atmosphere. Offerors are encouraged to review the SPR Crude Oil Assay Manual, Sour Crude Oil Safety Data Sheet, and DOE specifications sheet as seen in Section J, Exhibit C-1 for more detailed oil stream composition

and specifics so that conditions (such as the presence of H_2S) are expected and communicated downstream.

B.9 CONTRACT MODIFICATION

Contract modification request(s) made by Contractor(s) will be evaluated by the Government on a case-by-case basis and the Contracting Officer will have the sole authority to grant or negotiate such request(s). Requesting a modification does not ensure success or acceptance of the contract modification.

PART I - THE SCHEDULE

SECTION C

STATEMENT OF WORK

PART I - THE SCHEDULE

SECTION C

STATEMENT OF WORK

PAGE

C.1 SCOPE OF WORK C-1

SECTION C

STATEMENT OF WORK

C.1 SCOPE OF WORK

The Contractors shall take delivery from SPR sites up to 32,000,000 barrels of sour Exchange Oil as seen in the table below. All costs associated with the delivery of Exchange Oil from the SPR site shall be at the Contractor's expense. Scheduling of deliveries shall be in accordance with Section F of this contract.

Delivery of Return Oil in addition to premium barrels, shall be completed in the periods as noted in the table below. All costs associated with the delivery of Return Oil to the SPR site shall be at the Contractor's expense. Scheduling of deliveries shall be in accordance with Section F of this contract.

Site	Exchange Volume Awarded	Nominal Delivery Rate per Full Month (Bbls)	Exchange Delivery Period	Nominal Delivery Rate per Full Month (Bbls)	Return Period No. 1		Return Period No. 2		Return Period No. 3	
					Delivery Date Range	Prem. %	Delivery Date Range	Prem. %	Delivery Date Range	Prem. %
Bryan Mound	10,000,000	3,000,000	12/16/21 - 3/30/22	2,000,000	1/1/23 -2/28/23	3.9%	6/1/23 - 9/30/23	5.3%	6/1/24 - 9/30/24	8.6%
Big Hill	10,000,000	2,800,000	12/16/21 - 4/30/22	3,300,000	7/1/22 - 9/30/22	2.3%	1/1/23 - 2/28/23	3.9%	8/1/24 - 9/30/24	9.1%
West Hackberry	7,000,000	2,800,000	12/16/21 - 12/31/21 2/1/22 - 4/30/22	1,700,000	7/1/22 - 8/31/22	2.3%	7/1/23 - 9/1/23	5.6%	6/1/24 - 9/30/24	8.6%
Bayou Choctaw	5,000,000	1,400,000	12/16/21 - 3/30/22	1,400,000	9/1/23 - 9/30/23	6.1%	6/1/24 - 9/30/24	8.6%	N/A	N/A

PART I - THE SCHEDULE

SECTION D

PACKAGING AND MARKING REQUIREMENTS

SECTION D

PACKAGING AND MARKING REQUIREMENTS

RESERVED

PART I - THE SCHEDULE

SECTION E

INSPECTION AND ACCEPTANCE

PART I – THE SCHEDULE

SECTION E

INSPECTION AND ACCEPTANCE

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SECTION E

INSPECTION AND ACCEPTANCE

E.1 CUSTODY TRANSFER MEASUREMENTS FOR DELIVERY OF EXCHANGE OIL FROM SPR SITES

Custody transfer measurements will be in accordance with established API standards and will be performed and or witnessed by a Government representative. The Contractor may witness the measurement and testing of Exchange Oil for its account and/or may provide, at Contractor's expense, a Contractor's inspector to witness the measurement and testing process. The custody transfer measurements of the Exchange Oil to be delivered from SPR to the Contractor will be based on the following delivery locations:

a. Bryan Mound to Seaway Freeport Dock

CUSTODY TRANSFER – Custody transfer quantity and quality measurements will be the Seaway Freeport Dock meters and in-line sampler for deliveries at the connection point between the Bryan Mound pipeline and the Seaway Freeport Dock. Secondary measurement for quantity and quality will be at the Bryan Mound meter and in-line sampler. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing if necessary. The SPR will not be liable for any demurrage charges.

b. Bryan Mound to Seaway Texas City Terminal

CUSTODY TRANSFER – Custody transfer quantity and quality measurements will be the Bryan Mound site meters and sampler for deliveries into the ExxonMobil 40" pipeline connecting to Seaway Texas City Terminal. Secondary measurement for quantity will be at the Texas City meter and quality based on grab samples taken at the Bryan Mound site. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing if necessary.

c. Big Hill to Sun Tanks

CUSTODY TRANSFER – Custody transfer quantity and quality measurements will be the Sun/DOE meter skid and inline sampler located in Sun Marine Terminal. Secondary measurement for quantity will be the Sun shore tank and quality based or manual grab samples taken at the Sun/DOE inline sampler. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing if necessary. The SPR will not be liable for any demurrage charges.

d. Big Hill to Phillips 66

CUSTODY TRANSFER – Custody transfer quantity and quality measurements will be the Phillips 66 Terminal receipt shore tank gauges and tank composite sample. Secondary measurement for quantity and quality will be at the Big Hill Site meter and in-line sampler. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and perform testing. Contractors will be invoiced an additional $0.13 per barrel throughput for all crude oil that passes through the P66 Beaumont Terminal Connection Point.

e. West Hackberry to Sun Tanks

CUSTODY TRANSFER – Custody transfer quantity and quality measurements will be the Sun/DOE meter skid and inline sampler located in Sun Marine Terminal. Secondary measurement for quantity will be on the up-gauge on the Sun shore tank and quality based or manual grab samples taken at the Sun/DOE inline sampler. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing if necessary. The SPR will not be liable for any demurrage charges.

f. West Hackberry thru LCMS to Zydeco-Shell 22" Pipeline

CUSTODY TRANSFER – Custody transfer quantity and quality measurements will be the DOE LCMS meters and in-line sampler for deliveries into the Zydeco-Shell 22" pipeline. Secondary measurement for quantity will be at the West Hackberry meter and quality based on grab samples taken at the DOE Lake Charles Meter Station. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing if necessary.

g. Bayou Choctaw to Redstick

CUSTODY TRANSFER – Custody transfer quantity and quality measurements will be the Bayou Choctaw Meters and in-line sampler for deliveries into the Redstick pipeline. Secondary measurement for quantity will be the applicable St. James Terminal meter and quality will be inline samples taken at the SPR Bayou Choctaw site. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing if necessary.

E.2 CUSTODY TRANSFER MEASUREMENTS FOR RETURN OIL TO SPR SITES

Custody transfer measurements will be in accordance with established API standards and will be performed and or witnessed by a Government representative. The Contractor may witness the measurement and testing of Return Oil for its account and/or may provide, at Contractor's expense, a Contractor's inspector to witness the measurement and testing process. The custody transfer measurements of the Return Oil to be delivered to SPR from the Contractor will be based on the following delivery locations:

a. **Seaway Freeport Terminal #2**, Freeport, Texas for delivery to the SPR Bryan Mound site.

Primary custody transfer of quantity and quality will be based on the Seaway Freeport Terminal #2 dock meter and in-line sampler. **Note: If**

deliveries are fulfilled through Jones Creek tankage and into Freeport Docks, then custody transfer quantity and quality measurements for the delivery of Return Oil to the SPR shall be based on the Bryan Mound site meters and inline sampler. The Government contracted third party inspection company will witness all measurement and testing and perform testing.

Secondary custody transfer quantity and quality measurements for the delivery of oil to the SPR shall be based on the Bryan Mound site meters and inline sampler. The Government contracted third party inspection company will witness all measurement and testing and perform testing.

The Contractor is responsible for terminal throughput charges for oil deliveries performed under these conditions.

A sample collected from the Seaway dock certified automatic in-line sampler shall be used for quality determination. API Gravity, Sulfur, Water, and Sediment will be determined by the Government contracted third party inspection company laboratory. In the event the Freeport meters fails, the backup measurement will be the Bryan Mound site meters. In the event the Freeport inline sampler fail, the Bryan Mound inline sampler will be used for quality. For this sample, the analysis consisting of API Gravity, Sulfur, Water, and Sediment shall be performed by the SPR Bryan Mound facility and witnessed by the Government third party inspector.

NOTE: The DOE requires that testing be performed on shipments prior to discharge. If load-port samples from the vessel or tanks are not made available for DOE testing, then Disport samples will be taken at the Seaway dock for testing. Samples from the vessel's tanks will need to be tested for contaminants prior to any receipts into SPR site caverns. Light Ends content will also be tested. The Government third party inspector will retrieve vessel samples upon arrival to expedite testing. Delivery and testing can take between eight to ten hours to complete. Vessel may begin discharging into the Bryan Mound Site shore tanks and will be held in tanks until all testing is approved. In the event of any delays in delivery and/or testing, vessel may have to slow its rate and/or stop if necessary.

In the event Seaway dock personnel detect an H_2S reading on the vessel at or greater than 10 ppm, vessel gauging, and sampling will not be allowed by the Terminal. In this instance, the DOE will permit sampling at the Bryan Mound site, allowing the vessel to commence discharge into Bryan Mound tanks until samples can be retrieved and tested.

In the event the terminal does not permit vessel gauging and sampling, Load Port samples will be required to expedite testing by the DOE.

Therefore, upon vessel's arrival at the terminal dock each Offeror must submit a sealed Load Port (vessel cargo tanks) sample to the Government contracted third party inspection company for preliminary testing. Load Port samples are REQUIRED for all vessel cargoes to be delivered to the SPR. The SPR will not be liable for any demurrage charges.

b. Redstick Pipeline to Bayou Choctaw

Custody transfer quantity and quality measurements for the Return Oil to the SPR shall be based on the Bayou Choctaw site meter and quality will be the inline sampler. Secondary measurement for quantity and quality will be at the applicable St. James Terminal facility. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party inspector laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing.

c. Nederland/Sun to Big Hill

Custody transfer quantity and quality measurements will be the DOE meter skid and inline sampler located in Sun Marine Terminal. Secondary measurement for quantity will be on the Sun shore tank and quality based on manual grab samples taken at the Sun/DOE inline sampler. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing. The SPR will not be liable for any demurrage charges.

d. Phillips 66 at Beaumont to Big Hill

Custody transfer quantity and quality measurements will be the Big Hill meters and in-line sampler. Secondary custody transfer quantity and quality measurements will be the Phillips 66 delivery shore tank gauges and tank composite sample for deliveries into the Big Hill pipeline. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Governmentcontracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements

and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing. Contractors will be invoiced an additional $0.13 per barrel throughput for all crude oil that passes through the P66 Beaumont Terminal Connection Point.

e. Nederland/Sun to West Hackberry

Custody transfer quantity and quality measurements will be the DOE meter skid and sampler located in Sun Marine Terminal deliveries into the West Hackberry pipeline. Secondary measurement for quantity will be on the down-gauge on the Sun shore tank and quality based on manual grab samples taken at the Sun/DOE inline sampler. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing. The SPR will not be liable for any demurrage charges.

f. Zydeco-Shell 22" Pipeline to DOE LCMS (West Hackberry)

Custody transfer quantity and quality measurements will be the DOE LCMS site meters and sampler for deliveries into the DOE LCMS. Secondary measurement for quantity will be at the West Hackberry meter and quality based on grab samples taken at the LCMS. The API Gravity, Sediment and Water, and Sulfur content will be performed by the Government contracted third party laboratory. Contractor shall have the right to have a representative present to witness all sampling, measurements and testing analysis. The Government contracted third party inspection company will witness all measurement and testing and perform testing.

E.3 CRUDE OIL QUALITY DETERMINATION

a. Loadport origin vessel or tanks will need to be sampled and tested by the Government inspector prior to discharge at the SPR sites for Return Oil receipts. More detailed information will be provided through the Nomination form. A disport sample will be taken in order to confirm crude oil quality from the loadport.

b. The quality of the Return Oil that is delivered by the Contractor to the SPR will be determined from samples taken, in order of preference: (1) From a representative sample collected by an automatic sampler whose performance

has been proven in accordance with the API Manual of Petroleum Measurement Standards, Chapter 8, Section 2, Automatic Sampling of Petroleum and Petroleum Products (ASTM D4177), latest edition; or (2) from the Contractor's tankage in accordance with API Manual of Petroleum Measurement Standards, Chapter 8, Section 1, Manual Sampling of Petroleum and Petroleum Products (ASTM International (ASTM) D4057), latest edition; or (3) from a representative vessel composite sample obtained in accordance with the API Manual of Petroleum Measurement Standards Chapter 17 – Marine Measurement, Section 2 – Measurement of Cargoes On Board Tank Vessels. Preference will be given to samples collected by means of an automatic sampler when such a system is available and operational.

All methods above shall be in accordance with the latest API/ASTM standards and methods. If the measurements are determined by the Government contracted third party inspection company to be inaccurate or not to represent the volume delivered by the Contractor, the subsequent order of preference method, as stated above, shall apply.

c. If the Return Oil tendered for delivery to the SPR does not meet the specifications as provided in Section J, Exhibit C, the Government reserves the right to refuse the acceptance of the delivery.

d. The custody transfer quality/quantity crude oil analysis shall be performed by the Government contracted third party lab and is the official record of measurement. The Contractor may request a representative portion of the custody transfer sample for their internal purposes, but any varying analysis results obtained by the Contractor shall not be binding on the Government nor override the Government's official measurements of record. The Contractor or his representative may, at its option, arrange to witness and verify testing simultaneously with the Government contracted third party inspection company's laboratory. Such services, however, will be for the account of the Contractor. Should the Contractor choose not to witness the testing, then the Government findings will be binding on the Contractor.

e. For pipeline deliveries of Return Oil to the SPR storage site, the Contractor shall ensure that the commercial pipeline carriers provide Government contracted third party inspection company access to the pipeline facilities for the obtaining of Return Oil samples.

f. Exchange Oil custody inspection and testing will be performed by the Government third party inspection company, who will test for API, Sulfur, Water, and Sediment.

NOTE: Any additional costs (including overtime) charged by the pipeline carrier which are directly associated with the Government sampling requirement shall be the responsibility of the Contractor.

E.4 CRUDE OIL QUANTITY DETERMINATION OF EXCHANGE AND RETURN OIL

a. The quantity of the Exchange and Return Oil that is delivered by the Contractor to the SPR or SPR to the Contractor will be determined, in order of preference: (1) By delivery meter in accordance with the API Manual of Petroleum Measurement Standards, Chapter 5 – Metering, Section 3 – Measurement of Liquid Hydrocarbons by Turbine Meters; or (2) by opening and closing tank gauges (with adjustment for opening and closing free water and Sediment and Water tests as determined from shore tank samples; or (3) by vessel ullage measurements with qualified VEF in accordance with API Manual of Petroleum Measurement Standards, Chapter 17 – Marine Measurement. All volumetric measurements will be corrected to net standard volume in barrels at 60°F, using the API Manual of Petroleum Measurement Standards, Chapter 11.1, Volume 1, Volume Correction Factors (ASTM D1250) (IP 200); Table 5A-Generalized Crude Oils, Correction of Observed API Gravity to API Gravity at 60°F; Table 6A-Generalized Crude Oils, Correction of Volume to 60°F Against API Gravity at 60°F, latest edition, and by deducting the tank's free water, and the entrained Sediment and Water as determined by the testing of composite all levels samples taken from the delivery tanks.

b. The quantity measurements shall be performed and certified by the Government's responsible party for delivery operations, and witnessed by the Government contracted third party inspection company at the delivery point. The Contractor may, at its option, have representatives present at the gauging/metering, sampling, and testing. Should the Contractor arrange for additional inspection or testing services, such services will be for the account of the Contractor, and any results obtained by the Contractor shall not be binding on the Government. Should the Contractor not arrange for additional services, then the Government's quantity determination shall be binding on the Contractor.

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SECTION F

DELIVERIES OR PERFORMANCE

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DELIVERIES OR PERFORMANCE

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SECTION F

DELIVERIES OR PERFORMANCE

F.1 SCHEDULING OF EXCHANGE AND RETURN OIL MOVEMENTS

a. For all Exchange Oil deliveries for the months of December 16, 2021 through April 30, 2022, the Contractor shall nominate a ratable delivery program to the DOE no later than December 15, 2021. The Government will respond to the Contractor within ten business days of submittal, confirming the ratable schedule as originally submitted or proposing alterations. The Contractor shall confirm nominations with the DOE via email using the form included in Section J, Exhibit H.

b. For marine deliveries, the Contractor shall make necessary arrangements with the commercial terminals connected to the DOE. The nomination will include a five-day delivery window for each cargo, the type of oil, and the approximate delivery volume. Certain restrictions may apply if the total volume to be delivered to the SPR precludes the availability of five-day delivery ranges for all of the cargoes. In this case, the Contractor's five-day delivery ranges will be proportionately reduced. Delivery program nominations received by DOE subsequent to the required time period or those altered as a result of a contract modification will be handled by DOE on a best efforts basis. Requests for contract modifications will be evaluated after scheduling of original awards. The Contractor shall be deemed to have agreed to such alterations unless the Contractor requests the Government to reconsider its request within two business days of notification of delivery range reduction. The Government will use its best efforts to accommodate such requests, but its decision following any reconsideration shall be final and binding.

(1) No later than seven calendar days prior to the delivery month, the Contractor shall narrow the five-day delivery range to a three-day delivery window and nominate the name of the vessel, the vessel quality data, the expected date of arrival, and the volume to be delivered. The DOE will accept or reject the nomination, without prejudice, and advise the Contractor within one calendar day of the disposition of the vessel nominated. Due to SPR receipt capabilities as defined in Section B.6 and possible scheduling conflicts, certain limitations may be applied to the accepted three-day delivery windows. A Contractor may be required to modify the three-day

delivery window nomination to an alternate period within the established five-day delivery range.

(2) The Contractor, or its designated agent, will provide pre-arrival notices seventy-two hours, forty-eight hours, and twenty-four hours prior to discharge to both the DOE and the discharge terminal.

(3) Return Oil delivery plan shall be provided to the DOE not later than sixty days prior to the month in which deliveries will be made. Nominations will adhere to Section F.1(c).

c. Except for as noted in Section F.1(a), for pipeline Return Oil deliveries, the Contractor shall make necessary arrangements with the commercial pipelines connected to the SPR or its interconnecting pipelines. Nomination information regarding these movements will be provided to the DOE not later than fourteen days prior to the month in which deliveries will be made.

d. The Contractor shall be responsible for meeting all delivery requirements imposed by the commercial facilities, including complying with the rules, regulations and procedures contained in applicable port/terminal manuals, pipeline tariffs, or other applicable documents.

e. If there is a conflict between vessel schedules submitted in accordance with Section F.1(b), and pipeline schedules submitted in accordance with Section F.1(c), the Government will resolve in favor of the pipeline schedule.

f. Whenever an inspector and/or loss control representative is appointed by the Contractor to witness the delivery operation (gauging, sampling, testing, etc.), written notification shall be provided to the DOE, no later than seventy-two hours prior to the scheduled date of each applicable cargo delivery to or from the SPR.

g. Absence of the name(s) of a Contractor’s inspector and/or representative on the delivery documentation constitutes acceptance by the Contractor of the delivery quantity and quality as determined by the DOE and/or its representative(s).

h. The Contractor is solely responsible for making the necessary arrangements with terminals and pipeline carriers, including tankage, to achieve any minimum rate/quantity required by connecting commercial facilities to ensure deliveries are made to/from DOE delivery location. Contractors are also cautioned that gauging and or testing of all incoming Return Oil in order to determine SPR compatibility, as noted in Section J, Exhibit C-1, will

require the tank to be static. This should be a consideration of all Offerors when investigating terminals/pipelines and when submitting ratable schedules as noted in Section B.6(c).

i. Contractors must comply with the Jones Act, 46 U.S.C. § 55102 Transportation of Merchandise. See Section J, Exhibit F.

j. The Contractor's vessel agent, who will be nominated for approval by the DOE, will be responsible for providing the DOE with full delivery information for all vessel deliveries, to include but not limited to, the load quantity/quality, departure timeframes and all pertinent data. The Contractor or Contractor's vessel agent shall provide to DOE, upon DOE request, the following load port Return Oil quality results prior to vessel arrival at discharge port: API Gravity, Sulfur, Sediment, and Water. Additionally, pre-arrival information shall be provided regarding ETAs and any special delivery requirements that may affect the expedient discharge of the vessel. Upon arrival at the discharge port, the Contractor or Contractor's vessel officer shall provide a vessel load port sample to the DOE third party inspector.

k. Due to varying conditions of vessel delivery and shipping or pipeline transmission, the quantity actually delivered may vary by +/-5 percent for each shipment. However, in accordance with Sections B.6 and B.7, the Contractor shall engage sufficient transportation capacity during the month's scheduled deliveries in order to ensure that the total contracted quantity will be delivered, without exceeding the agreed upon quantity.

l. To assist the Government's reporting under the Cargo Preference Act, the Contractor, at the time of delivery, shall provide information regarding the marine transportation of the Exchange Oil into the Government. Information required is the origin port, flag of registry, vessel name, destination port and transportation costs. If the Contractor acquires non-domestic Return Oil that has already been delivered to a U.S. port, information is required as to the date acquired by the Contractor and the oil's location, e.g., name of U.S. terminal or storage facility, at that time.

m. If the award is made on the basis of U.S. flag tonnage (ocean going tankship), within seven days of award, the Contractor shall provide a copy of a charter and/or agreement documenting the use of U.S. Flag Carriers for the contract volumes agreed upon in the award. If documentation is not received, the conditions listed in Section F.1(n) below will apply.

n. If during the performance of a contract awarded on the basis of foreign flag vessel delivery, U. S. -flag vessel(s) become available for use by the Contractor, the Contracting Officer will consider a request for contract modification for use of such vessels.

o. If U.S. Flag tonnage (ocean going tankship) is offered and requires multiple delivery vessels (e.g., lightering), the mother vessel, at a minimum, must be of U.S. registry.

p. If the Offeror cannot secure U.S. flag tonnage (ocean going tankship) after it was agreed upon in the contract, such may result, at the Government's option, in termination by default or the obligation to provide additional crude oil to the SPR to compensate for the freight differential of substituting foreign flag tonnage. The calculation of the freight differential will be determined by the Contracting Officer.

F.2 EXCHANGE OIL AND RETURN OIL DOCUMENTATION OF OIL MOVEMENTS

The quantity and quality determination of the Exchange Oil and Return Oil delivered shall be documented on the Material Inspection and Receiving Report (DD Form 250 for pipeline and vessel receipts (DD250-1), see Section J, Exhibit D for a sample of the form). Copies of the completed DD Form 250, with applicable supporting documentation (i.e., metering or tank gauging tickets and appropriate calculation worksheets), will be furnished to the Contractor and/or the Contractor's authorized representative after completion of delivery for signature agreeing to the quantity and quality of crude delivered. Marine Bills of Lading or Pipeline Statements identifying crude type shipped shall also be provided by the Contractor.

F.3 PERIOD OF PERFORMANCE

a. The window for Exchange Oil deliveries from Bayou Choctaw, West Hackberry, Big Hill, and Bryan Mound can be found at Section C.1. Requests for early deliveries will be accommodated to the maximum extent possible on a best efforts basis, terms subject to negotiations. Preference for delivery ranges will be given to those Contractors who are awarded based on Offer Form A.1, see Sections B.5(a)–(b) and Section J, Exhibit A.1, at each SPR receiving terminal/site, except that conflicts between marine and pipeline schedules will be resolved in favor of pipeline deliveries. Nominations received subsequent to due date (reference Section F.1(a)) will negate the order of preference and will be scheduled on available basis. All

deliveries to the SPR sites must be completed on or before the dates found in Section C.1.

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SECTION G

CONTRACT ADMINISTRATION DATA

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CONTRACT ADMINISTRATION DATA

G.1 DOE SPR CORRESPONDENCE PROCEDURES

To promote timely and effective administration, correspondence submitted under this contract shall be subject to the following procedures:

Correspondence from the Contractor shall be submitted to the Contracting Officer, the contract specialist, the Technical Representative (TR), Alternate Technical Representative and FFPOCOL in an electronic format to the email addresses provided below.

a. Contracting Officer's contact information:

Kelly Gele
Kelly.Gele@spr.doe.gov
O: 504) 734-4343 / C: (504) 432-2105

b. The Contract Specialist's contact information:

Mary Roark
Mary.Roark@spr.doe.gov
O: (504) 734-4195 / C: (504) 331-0259

c. The Technical Representative's contact information:

Christopher Roark
Christopher.Roark@spr.doe.gov
O: (504) 734-4134 / C: (504) 638-8372

Alternate Technical Representative's contact information:

Racheal Baldwin
Racheal.Baldwin@spr.doe.gov
O: (504) 734-4238 / C: (504) 273-8758

d. FFPOCOL's contact information:

FFPOCOL@spr.doe.gov

G.2 BILLING INSTRUCTIONS

The Contractor must submit vouchers electronically through the Oak Ridge Financial Service Center's (ORFSC) Vendor Inquiry Payment Electronic Reporting System (VIPERS). VIPERS allows vendors to submit vouchers, attach supporting documentation and check the payment status of any voucher submitted to the DOE. Submitting electronically provides benefits to vendors by:

- Reducing the cost of paper and postage.
- Allowing supporting documentation to be attached and routed with the voucher to program and approving officials.
- Immediately interfacing vouchers to DOE's accounting system saving several days of mail and manual processing time.
- Decreasing potential errors caused by manual input.
- Facilitating the prompt payment of vouchers.

To obtain access to and to use VIPERS, please visit the web page at https://vipers.doe.gov.

Detailed instructions on how to enroll and use the system are provided on the web page. Please do not send a paper copy of a voucher that has been submitted electronically.

The DOE will make invoice payments under the terms and conditions specified in the contract by the 30th calendar day after the designated billing office receives a proper invoice from the Contractor. The Government considers payment as being made on the date of an electronic funds transfer (EFT).

A proper invoice must include the following:

Company name
Department of Energy contract number
Invoice number
Delivery date
Crude type
Name(s) of U.S. producer(s) from which the crude was sourced
Shipped via (pipeline or vessel name)
Terminal location
DD Form 250 (copy)
Quantity (barrels)

Unit price (USD)
Total amount due (USD)

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SECTION H

SPECIAL CONTRACT REQUIREMENTS

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SPECIAL CONTRACT REQUIREMENTS

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SPECIAL CONTRACT REQUIREMENTS

H.1 TITLE TO CRUDE OIL

a. Title to the Exchange Oil delivered from the SPR will be transferred to the Contractor at the custody transfer measurement locations listed in Section E.1.

b. Title to the Return Oil received from the Contractor will be transferred to the SPR at the custody transfer measurement locations listed in Section E.2.

c. The DOE shall have the right to reject any Return Oil which, when tendered for delivery, may be involved in litigation, or the title of which may be in dispute. Also, the DOE may require of the Contractor satisfactory evidence of the Contractor's perfect and unencumbered title or satisfactory indemnity bond. The Contractor warrants and guarantees that it has good title thereto to the Return Oil being provided to the DOE.

H.2 NATIONAL AND OPERATIONAL EMERGENCIES

Crude oil deliveries to or from the SPR may be rescheduled or redirected upon the determination of a national or DOE operational emergency. A negotiated adjustment to the contract will be made as a result of this direction if warranted as decided by the Contracting Officer.

H.3 FORCE MAJEURE

Force Majeure means, except for payment due hereunder, either party thereto shall be relieved from liability for failure to perform hereunder for the duration and to the extent such failure is occasioned by war, riots, insurrections, national healthcare emergencies, fire, explosions, sabotage, strikes, and other labor or industrial disturbances, acts of God or the elements, disruption or breakdown of production or transportation facilities, delays of pipeline carrier in receiving and delivering crude oil tendered, or by any other cause, whether similar or not, reasonably beyond the control of such party. Any such failures to perform shall be remedied with all reasonable dispatch.

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SECTION I

CONTRACT CLAUSES

I.1 System for Award Management Maintenance.

(a) Definitions. As used in this clause—

Electronic Funds Transfer (EFT) indicator means a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the commercial, nonprofit, or Government entity to establish additional System for Award Management (SAM) records for identifying alternative EFT accounts (see subpart 32.11) for the same entity.

Registered in the System for Award Management (SAM) means that—

(1) The Contractor has entered all mandatory information, including the unique entity identifier and the EFT indicator (if applicable), the Commercial and Government Entity (CAGE) code, as well as data required by the Federal Funding Accountability and Transparency Act of 2006 (see subpart 4.14), into SAM;

(2) The Contractor has completed the Core, Assertions, Representations and Certifications, and Points of Contact sections of the registration in SAM;

(3) The Government has validated all mandatory data fields, to include validation of the Taxpayer Identification Number (TIN) with the Internal Revenue Service (IRS). The Contractor will be required to provide consent for TIN validation to the Government as a part of the SAM registration process; and

(4) The Government has marked the record “Active”.

System for Award Management (SAM) means the primary Government repository for prospective Federal awardee and Federal awardee information and the centralized Government system for certain contracting, grants, and other assistance-related processes. It includes—

(1) Data collected from prospective Federal awardees required for the conduct of business with the Government;

(2) Prospective contractor-submitted annual representations and certifications in accordance with FAR subpart 4.12; and

(3) Identification of those parties excluded from receiving Federal contracts, certain subcontracts, and certain types of Federal financial and non-financial assistance and benefits.

Unique entity identifier means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

(b) If the solicitation for this contract contained the provision 52.204-7 with its Alternate I, and the Contractor was unable to register prior to award, the Contractor shall be registered in SAM within 30 days after award or before three days prior to submission of the first invoice, whichever occurs first.

(c) The Contractor shall maintain registration in SAM during contract performance and through final payment of any contract, basic agreement, basic ordering agreement, or blanket purchasing agreement. The Contractor is responsible for the currency, accuracy and completeness of the data within SAM, and for any liability resulting from the Government's reliance on inaccurate or incomplete data. To remain registered in SAM after the initial registration, the Contractor is required to review and update on an annual basis, from the date of initial registration or subsequent updates, its information in SAM to ensure it is current, accurate and complete. Updating information in SAM does not alter the terms and conditions of this contract and is not a substitute for a properly executed contractual document.

(d)(1)(i) If a Contractor has legally changed its business name or "doing business as" name (whichever is shown on the contract), or has transferred the assets used in performing the contract, but has not completed the necessary requirements regarding novation and change-of-name agreements in subpart 42.12, the Contractor shall provide the responsible Contracting Officer a minimum of one business day's written notification of its intention to—

(A) Change the name in SAM;

(B) Comply with the requirements of subpart 42.12 of the FAR; and

(C) Agree in writing to the timeline and procedures specified by the responsible Contracting Officer. The Contractor shall provide with the notification sufficient documentation to support the legally changed name.

(ii) If the Contractor fails to comply with the requirements of paragraph (d)(1)(i) of this clause, or fails to perform the agreement at paragraph (d)(1)(i)(C) of this clause, and, in the absence of a properly executed novation or change-of-name agreement, the SAM information that shows the Contractor to be other than the Contractor indicated in the contract will be considered to be incorrect information within the meaning of the "Suspension of Payment" paragraph of the electronic funds transfer (EFT) clause of this contract.

(2) The Contractor shall not change the name or address for EFT payments or manual payments, as appropriate, in SAM record to reflect an assignee for the purpose of assignment of claims (see FAR subpart 32.8, Assignment of Claims). Assignees shall be separately registered in SAM. Information provided to the Contractor's SAM record that indicates payments, including those made by EFT, to an ultimate recipient other than that Contractor will be considered to be incorrect information within the meaning of the "Suspension of Payment" paragraph of the EFT clause of this contract.

(3) The Contractor shall ensure that the unique entity identifier is maintained with the entity designated at www.sam.gov for establishment of the unique entity identifier throughout the life of the contract. The Contractor shall communicate any change to the unique entity identifier to the Contracting Officer within 30 days after the change, so an appropriate modification can be issued to update the data on the contract. A change in the unique entity identifier does not necessarily require a novation be accomplished.

(e) Contractors may obtain additional information on registration and annual confirmation requirements at www.sam.gov.

(End of clause)

I.2 Commercial and Government Entity Code Maintenance.

(a) *Definition.* As used in this clause—

Commercial and Government Entity (CAGE) code means—

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

(b) Contractors shall ensure that the CAGE code is maintained throughout the life of the contract. For contractors registered in the System for Award Management (SAM), the DLA Commercial and Government Entity (CAGE) Branch shall only modify data received from SAM in the CAGE master file if the contractor initiates those changes via update of its SAM registration. Contractors undergoing a novation or change-of-name agreement shall notify the contracting officer in accordance with subpart 42.12. The contractor shall communicate any change to the CAGE code to the contracting officer within 30 days after the change, so that a modification can be issued to update the CAGE code on the contract.

(c) Contractors located in the United States or its outlying areas that are not registered in SAM shall submit written change requests to the DLA Commercial and Government Entity (CAGE) Branch. Requests for changes shall be provided at https://cage.dla.mil. Change requests to the CAGE master file are accepted from the entity identified by the code.

(d) Contractors located outside the United States and its outlying areas that are not registered in SAM shall contact the appropriate National Codification Bureau (points of contact available at http://www.nato.int/structur/AC/135/main/links/contacts.htm) or NSPA at https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx to request CAGE changes.

(e) Additional guidance for maintaining CAGE codes is available at https://cage.dla.mil.

(End of clause)

I.3 Contract Terms and Conditions - Commercial Items.

(a) *Inspection/Acceptance*. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its

postacceptance rights (1) within a reasonable time after the defect was discovered or should have been discovered; and (2) before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes*. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at FAR 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions*. The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) *Invoice.* (1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR part 1315.

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign

patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment*- (1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.* (i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the

interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by 33.211 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in 32.608-2 of the Federal Acquisition Regulation in effect on the date of this contract.

(j) *Risk of loss*. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes*. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience*. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause*. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Other compliances*. The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 41 U.S.C. 4712 and 10 U.S.C. 2409 relating to whistleblower protections; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order: (1) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause; (2) the clause at 52.212-5; (3) addenda to this solicitation or contract, including any license agreements for computer software; (4) solicitation provisions if this is a solicitation; (5) other paragraphs of this clause; (6) the Standard Form 1449; (7) other documents, exhibits, and attachments; and (8) the specification.

(t) Reserved.

(u) *Unauthorized Obligations.* (1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) *Incorporation by reference*. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

PART III – LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION J

LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION J

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SECTION J.A

EXHIBIT A

OFFER FORM

EXHIBIT A.1

OFFER FORM

EXHIBIT A.1

Line Item	SPR Site	Volume Offered [1]	Period of Exchange Oil delivery from SPR (month or months)	Period of Return Oil delivery to SPR (No.1/No.2/No.3)	Return Oil Grade Type [2]	API	Sulfur	Delivery Mode	Location
1									
2									
3									
4									
5									

SPR Site Code:	
BM	Bryan Mound
BH	Big Hill
WH	West Hackberry
BC	Bayou Choctaw

Delivery Modes	
P/L	Pipeline
US	US Flag Vessel

Location
Freeport Terminal
Nederland Terminal
St. James Terminal
LCMS (WH)
P66 at Beaumont (BH)

Note 1: Total award to Contractor will not exceed 10 Million barrels.

Note 2: A comprehensive assay is required to be submitted when Offer Form is submitted to the Government along with the Crude Oil Quality checklist for sour crude offered at Exhibits C-1.1 on Exchange Grade crude type offered for Return Oil.

SECTION J.B

EXHIBIT B

CONTRACT FORM

EXHIBIT B

CONTRACT FORM

SPR Crude Oil Exchange	CONTRACT NUMBER	Page 1 of ___

This contract is entered into by and between the United States of America, hereinafter called the "Government," represented by the Contracting Officer executing this contract and the Contractor below identified. The Contractor agrees to make available the Crude Oil to the Government SPR Site(s) in the volume amount identified below and the Government agrees to make payment in accordance with the terms and conditions of this contract.

Line Item	SPR SITE(S)*	TOTAL VOLUME AWARDED	Period of Exchange Oil delivery from SPR (month or months)	Period of Return Oil delivery to SPR (No.1/No.2/No.3)	Return Oil Grade Type	API	Sulfur	Delivery Mode	Location
1									
2									
3									
4									
5									

Total Contract value shall not exceed $

Accounting & Appropriation Data:

EXECUTION BY CONTRACTOR	**EXECUTION BY GOVERNMENT**
DATE (Day, Month, Year)	**UNITED STATES OF AMERICA** **DATE:** **BY:**
NAME OF CONTRACTOR	
ADDRESS (Street, City, State & Zip Code) (Type or Print)	**NAME AND TITLE OF CONTRACTING OFFICER**
INTERNET ADDRESS	_____ **Contracting Officer**
SIGNATURE AND TITLE OF PERSON AUTHORIZED TO **SIGN THIS CONTRACT** (Type or print name and title under Signature)	**U. S. Department of Energy** **Acquisition and Sales Division** **Strategic Petroleum Reserve**

SECTION J.C-1

EXHIBIT C-1

SPR CRUDE OIL SPECIFICATIONS

EXHIBIT C-1

STRATEGIC PETROLEUM RESERVE
CRUDE OIL SPECIFICATIONS [a]
(SPRO May 2020) [ε1]

CHARACTERISTIC	SOUR	SWEET	PRIMARY ASTM TEST METHOD [b]
API Gravity [°API]	30-45	30-45	D1298 or D5002
Total Sulfur [Mass %], max.	1.99	0.50	D4294
Pour Point [°C], max.	10	10	D97
Salt Content [Mass %], max.	0.050	0.050	D6470
Viscosity			
[cSt @ 15.6°C], max.	32	32	D445
[cSt @ 37.8°C], max.	13	13	
Vapor Pressure			
[VPCR4(100F),psia(KPa)], max.	9 psia (62.1 kPa)	9 psia (62.1 kPa)	D6377
Total Acid Number [mg KOH/g], max.	1.00	1.00	D664
Water and Sediment [Vol. %], max.	1.0	1.0	D473 and D4006, or D4928
Yields [Vol. %]			D2892 and D5236[c]
Naphtha [28-191°C]	24-30	21-42	
Distillate [191-327°C]	17-31	19-45	
Gas Oil [327-566°C]	26-38	20-42	
Residuum [>566°C]	10-19	14 max.	
Light Ends [Liquid Vol. %] [d], max			
Methane (C_1)	0.01	0.01	IP344 or ITM 6008
Ethane (C_2)	0.1	0.1	
Propane (C_3)	1.0	1.0	

[ε1] This revision includes a limitation on light ends content (see Footnote [d])

[a] Marketable crude petroleum suitable for normal refinery processing and free of foreign contaminants or chemicals including, but not limited to, pour point depressants, chlorinated and oxygenated hydrocarbons, and lead.

[b] Alternate methods may be used if approved by the Contracting Officer.

[c] D 7169 data may be provided in requesting conditional acceptance of a crude oil. Distillation data according to D 2892 and D 5236 will still be necessary for final qualification of a crude oil's acceptance.

[d] Light ends content specifications are interim and will be superseded if and when industry standards for light ends evaluation are implemented.

[e] Vapor pressure changed to better reflect current domestic crude standards.

NOTE 1: The SPR reserves the right to refuse to accept any Return Oil which meets these specifications but is deemed to be incompatible with existing stocks, or which has the potential for adversely affecting handling.

NOTE 2: The acceptability of any Return Oil depends upon any assay typical of current production quality of the stream. Assays typical of current production quality are mandatory for any Return Oil not received by the SPR within the last three years. Any Return Oil offered to the Strategic Petroleum Reserve that meets these specifications may be subject to additional testing for acceptance.

NOTE 3: All crude oil shipments received by the SPR are tested to ensure they meet specifications. Crude oil streams found consistently not meeting required specifications will be removed from the list of acceptable crude oils.

EXHIBIT C-1.1

Sour Quality Data						
Crude:						
Company:						
Date:						
Note:						
Product Parameter	**Test Method(s)**	**Units**	**Sour Specification**		**Result**	**Method of Analysis Used**
			Min	**Max**		
API Gravity	D1298 or D5002	[°API]	30	45		
Total Sulfur	D4294	[Mass %]	0.51	1.99		
Pour Point	D97	[°C]		10		
Salt Content	D6470, D3230	[Mass %]		0.05		
Viscosity @ 15.6°C	D445	[cSt]		32.0		
Viscosity @ 37.8°C	D445	[cSt]		13.0		
Vapor Pressure [VPCR4 (100°F)]	D6377	psia (kPa)		9 (62.1)		
Total Acid Number	D664	[mg KOH/g]		1.00		
Water	D4928,D4006	[Vol. %]		Report		
Sediment	D473	[Vol. %]		Report		
Water/Sediment Combined Value		[Vol. %]		1.0		
Yields [Vol. %]						
Naphtha [28-191°C]	D2892, D5236, D7169	[Vol. %]	24	30		
Distillate [191-327°C]	D2892, D5236, D7169	[Vol. %]	17	31		
Gas Oil [327-566°C]	D2892, D5236, D7169	[Vol. %]	26	38		
Residuum [>566°C]	D2892, D5236, D7169	[Vol. %]	10	19		
Light Ends [Liquid Vol. %]						
Methane (C_1)	IP344, ITM6008, D7900	[Liquid Vol.%]		0.01		
Ethane (C_2)	IP344, ITM6008, D7900	[Liquid Vol.%]		0.10		
Propane (C_3)	IP344, ITM6008, D7900	[Liquid Vol.%]		1.0		
Distillation						
IBP - 75°F	D7169	LV%[Wt.%]		Report		
IBP - 175°F	D7169	LV%[Wt.%]		Report		

SECTION J.C-2

EXHIBIT C-2

GravCap Tables for Quality Adjustment

GRAVCAP, INC.
ADJUSTMENT AUTHORIZATION

TABLES OF DIFFERENTIALS FOR USE IN DETERMINING ADJUSTMENTS FOR
DIFFERENCE IN GRAVITY OF CRUDE PETROLEUM

WHITE CAP SYSTEM - BONITO PIPE LINE COMPANY - SHIP SHOAL SYSTEM - CAPLINE SYSTEM

API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL
10.0	1.250	16.0	2.150	22.0	3.050	28.0	3.950
10.1	1.265	16.1	2.165	22.1	3.065	28.1	3.965
10.2	1.280	16.2	2.180	22.2	3.080	28.2	3.980
10.3	1.295	16.3	2.195	22.3	3.095	28.3	3.995
10.4	1.310	16.4	2.210	22.4	3.110	28.4	4.010
10.5	1.325	16.5	2.225	22.5	3.125	28.5	4.025
10.6	1.340	16.6	2.240	22.6	3.140	28.6	4.040
10.7	1.355	16.7	2.255	22.7	3.155	28.7	4.055
10.8	1.370	16.8	2.270	22.8	3.170	28.8	4.070
10.9	1.385	16.9	2.285	22.9	3.185	28.9	4.085
11.0	1.400	17.0	2.300	23.0	3.200	29.0	4.100
11.1	1.415	17.1	2.315	23.1	3.215	29.1	4.115
11.2	1.430	17.2	2.330	23.2	3.230	29.2	4.130
11.3	1.445	17.3	2.345	23.3	3.245	29.3	4.145
11.4	1.460	17.4	2.360	23.4	3.260	29.4	4.160
11.5	1.475	17.5	2.375	23.5	3.275	29.5	4.175
11.6	1.490	17.6	2.390	23.6	3.290	29.6	4.190
11.7	1.505	17.7	2.405	23.7	3.305	29.7	4.205
11.8	1.520	17.8	2.420	23.8	3.320	29.8	4.220
11.9	1.535	17.9	2.435	23.9	3.335	29.9	4.235
12.0	1.550	18.0	2.450	24.0	3.350	30.0	4.250
12.1	1.565	18.1	2.465	24.1	3.365	30.1	4.265
12.2	1.580	18.2	2.480	24.2	3.380	30.2	4.280
12.3	1.595	18.3	2.495	24.3	3.395	30.3	4.295
12.4	1.610	18.4	2.510	24.4	3.410	30.4	4.310
12.5	1.625	18.5	2.525	24.5	3.425	30.5	4.325
12.6	1.640	18.6	2.540	24.6	3.440	30.6	4.340
12.7	1.655	18.7	2.555	24.7	3.455	30.7	4.355
12.8	1.670	18.8	2.570	24.8	3.470	30.8	4.370
12.9	1.685	18.9	2.585	24.9	3.485	30.9	4.385

API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL
13.0	1.700	19.0	2.600	25.0	3.500	31.0	4.400
13.1	1.715	19.1	2.615	25.1	3.515	31.1	4.415
13.2	1.730	19.2	2.630	25.2	3.530	31.2	4.430
13.3	1.745	19.3	2.645	25.3	3.545	31.3	4.445
13.4	1.760	19.4	2.660	25.4	3.560	31.4	4.460
13.5	1.775	19.5	2.675	25.5	3.575	31.5	4.475
13.6	1.790	19.6	2.690	25.6	3.590	31.6	4.490
13.7	1.805	19.7	2.705	25.7	3.605	31.7	4.505
13.8	1.820	19.8	2.720	25.8	3.620	31.8	4.520
13.9	1.835	19.9	2.735	25.9	3.635	31.9	4.535
14.0	1.850	20.0	2.750	26.0	3.650	32.0	4.550
14.1	1.865	20.1	2.765	26.1	3.665	32.1	4.565
14.2	1.880	20.2	2.780	26.2	3.680	32.2	4.580
14.3	1.895	20.3	2.795	26.3	3.695	32.3	4.595
14.4	1.910	20.4	2.810	26.4	3.710	32.4	4.610
14.5	1.925	20.5	2.825	26.5	3.725	32.5	4.625
14.6	1.940	20.6	2.840	26.6	3.740	32.6	4.640
14.7	1.955	20.7	2.855	26.7	3.755	32.7	4.655
14.8	1.970	20.8	2.870	26.8	3.770	32.8	4.670
14.9	1.985	20.9	2.885	26.9	3.785	32.9	4.685
15.0	2.000	21.0	2.900	27.0	3.800	33.0	4.700
15.1	2.015	21.1	2.915	27.1	3.815	33.1	4.715
15.2	2.030	21.2	2.930	27.2	3.830	33.2	4.730
15.3	2.045	21.3	2.945	27.3	3.845	33.3	4.745
15.4	2.060	21.4	2.960	27.4	3.860	33.4	4.760
15.5	2.075	21.5	2.975	27.5	3.875	33.5	4.775
15.6	2.090	21.6	2.990	27.6	3.890	33.6	4.790
15.7	2.105	21.7	3.005	27.7	3.905	33.7	4.805
15.8	2.120	21.8	3.020	27.8	3.920	33.8	4.820
15.9	2.135	21.9	3.035	27.9	3.935	33.9	4.835

GRAVCAP, INC.
ADJUSTMENT AUTHORIZATION

TABLES OF DIFFERENTIALS FOR USE IN DETERMINING ADJUSTMENTS FOR
DIFFERENCE IN GRAVITY OF CRUDE PETROLEUM

WHITE CAP SYSTEM - BONITO PIPE LINE COMPANY - SHIP SHOAL SYSTEM - CAPLINE SYSTEM

API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL
34.0	4.850	40.0	5.100	46.0	4.950	52.0	4.050
34.1	4.865	40.1	5.100	46.1	4.935	52.1	4.035
34.2	4.880	40.2	5.100	46.2	4.920	52.2	4.020
34.3	4.895	40.3	5.100	46.3	4.905	52.3	4.005
34.4	4.910	40.4	5.100	46.4	4.890	52.4	3.990
34.5	4.925	40.5	5.100	46.5	4.875	52.5	3.975
34.6	4.940	40.6	5.100	46.6	4.860	52.6	3.960
34.7	4.955	40.7	5.100	46.7	4.845	52.7	3.945
34.8	4.970	40.8	5.100	46.8	4.830	52.8	3.930
34.9	4.985	40.9	5.100	46.9	4.815	52.9	3.915
35.0	5.000	41.0	5.100	47.0	4.800	53.0	3.900
35.1	5.000	41.1	5.100	47.1	4.785	53.1	3.885
35.2	5.000	41.2	5.100	47.2	4.770	53.2	3.870
35.3	5.000	41.3	5.100	47.3	4.755	53.3	3.855
35.4	5.000	41.4	5.100	47.4	4.740	53.4	3.840
35.5	5.000	41.5	5.100	47.5	4.725	53.5	3.825
35.6	5.000	41.6	5.100	47.6	4.710	53.6	3.810
35.7	5.000	41.7	5.100	47.7	4.695	53.7	3.795
35.8	5.000	41.8	5.100	47.8	4.680	53.8	3.780
35.9	5.000	41.9	5.100	47.9	4.665	53.9	3.765
36.0	5.020	42.0	5.100	48.0	4.650	54.0	3.750
36.1	5.020	42.1	5.100	48.1	4.635	54.1	3.735
36.2	5.020	42.2	5.100	48.2	4.620	54.2	3.720
36.3	5.020	42.3	5.100	48.3	4.605	54.3	3.705
36.4	5.020	42.4	5.100	48.4	4.590	54.4	3.690
36.5	5.020	42.5	5.100	48.5	4.575	54.5	3.675
36.6	5.020	42.6	5.100	48.6	4.560	54.6	3.660
36.7	5.020	42.7	5.100	48.7	4.545	54.7	3.645
36.8	5.020	42.8	5.100	48.8	4.530	54.8	3.630
36.9	5.020	42.9	5.100	48.9	4.515	54.9	3.615

API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL	API GRAVITY	DIFF. PER BBL
37.0	5.040	43.0	5.100	49.0	4.500	55.0	3.600
37.1	5.040	43.1	5.100	49.1	4.485		
37.2	5.040	43.2	5.100	49.2	4.470	For API GRAVITY values above 55.0° API the differential continues to decline 0.015/bbl. per 0.1° API GRAVITY.	
37.3	5.040	43.3	5.100	49.3	4.455		
37.4	5.040	43.4	5.100	49.4	4.440		
37.5	5.040	43.5	5.100	49.5	4.425		
37.6	5.040	43.6	5.100	49.6	4.410		
37.7	5.040	43.7	5.100	49.7	4.395		
37.8	5.040	43.8	5.100	49.8	4.380		
37.9	5.040	43.9	5.100	49.9	4.365		
38.0	5.060	44.0	5.100	50.0	4.350		
38.1	5.060	44.1	5.100	50.1	4.335		
38.2	5.060	44.2	5.100	50.2	4.320		
38.3	5.060	44.3	5.100	50.3	4.305		
38.4	5.060	44.4	5.100	50.4	4.290		
38.5	5.060	44.5	5.100	50.5	4.275		
38.6	5.060	44.6	5.100	50.6	4.260		
38.7	5.060	44.7	5.100	50.7	4.245		
38.8	5.060	44.8	5.100	50.8	4.230		
38.9	5.060	44.9	5.100	50.9	4.215		
39.0	5.080	45.0	5.100	51.0	4.200		
39.1	5.080	45.1	5.085	51.1	4.185		
39.2	5.080	45.2	5.070	51.2	4.170		
39.3	5.080	45.3	5.055	51.3	4.155		
39.4	5.080	45.4	5.040	51.4	4.140		
39.5	5.080	45.5	5.025	51.5	4.125		
39.6	5.080	45.6	5.010	51.6	4.110		
39.7	5.080	45.7	4.995	51.7	4.095		
39.8	5.080	45.8	4.980	51.8	4.080		
39.9	5.080	45.9	4.965	51.9	4.065		

GRAVCAP, INC.

ADJUSTMENT AUTHORIZATION

TABLES OF DIFFERENTIALS FOR USE IN DETERMINING ADJUSTMENTS FOR

DIFFERENCE IN SULFUR CONTENT FOR CRUDE PETROLEUM

WHITE CAP SYSTEM - BONITO PIPE LINE COMPANY - SHIP SHOAL SYSTEM - CAPLINE SYSTEM

PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL
0.00	1.000	0.60	1.600	1.20	2.200	1.80	2.800	2.40	3.400	3.00	4.000	3.60	4.600
0.01	1.010	0.61	1.610	1.21	2.210	1.81	2.810	2.41	3.410	3.01	4.010	3.61	4.610
0.02	1.020	0.62	1.620	1.22	2.220	1.82	2.820	2.42	3.420	3.02	4.020	3.62	4.620
0.03	1.030	0.63	1.630	1.23	2.230	1.83	2.830	2.43	3.430	3.03	4.030	3.63	4.630
0.04	1.040	0.64	1.640	1.24	2.240	1.84	2.840	2.44	3.440	3.04	4.040	3.64	4.640
0.05	1.050	0.65	1.650	1.25	2.250	1.85	2.850	2.45	3.450	3.05	4.050	3.65	4.650
0.06	1.060	0.66	1.660	1.26	2.260	1.86	2.860	2.46	3.460	3.06	4.060	3.66	4.660
0.07	1.070	0.67	1.670	1.27	2.270	1.87	2.870	2.47	3.470	3.07	4.070	3.67	4.670
0.08	1.080	0.68	1.680	1.28	2.280	1.88	2.880	2.48	3.480	3.08	4.080	3.68	4.680
0.09	1.090	0.69	1.690	1.29	2.290	1.89	2.890	2.49	3.490	3.09	4.090	3.69	4.690
0.10	1.100	0.70	1.700	1.30	2.300	1.90	2.900	2.50	3.500	3.10	4.100	3.70	4.700
0.11	1.110	0.71	1.710	1.31	2.310	1.91	2.910	2.51	3.510	3.11	4.110	3.71	4.710
0.12	1.120	0.72	1.720	1.32	2.320	1.92	2.920	2.52	3.520	3.12	4.120	3.72	4.720
0.13	1.130	0.73	1.730	1.33	2.330	1.93	2.930	2.53	3.530	3.13	4.130	3.73	4.730
0.14	1.140	0.74	1.740	1.34	2.340	1.94	2.940	2.54	3.540	3.14	4.140	3.74	4.740
0.15	1.150	0.75	1.750	1.35	2.350	1.95	2.950	2.55	3.550	3.15	4.150	3.75	4.750
0.16	1.160	0.76	1.760	1.36	2.360	1.96	2.960	2.56	3.560	3.16	4.160	3.76	4.760
0.17	1.170	0.77	1.770	1.37	2.370	1.97	2.970	2.57	3.570	3.17	4.170	3.77	4.770
0.18	1.180	0.78	1.780	1.38	2.380	1.98	2.980	2.58	3.580	3.18	4.180	3.78	4.780
0.19	1.190	0.79	1.790	1.39	2.390	1.99	2.990	2.59	3.590	3.19	4.190	3.79	4.790
0.20	1.200	0.80	1.800	1.40	2.400	2.00	3.000	2.60	3.600	3.20	4.200	3.80	4.800
0.21	1.210	0.81	1.810	1.41	2.410	2.01	3.010	2.61	3.610	3.21	4.210	3.81	4.810
0.22	1.220	0.82	1.820	1.42	2.420	2.02	3.020	2.62	3.620	3.22	4.220	3.82	4.820
0.23	1.230	0.83	1.830	1.43	2.430	2.03	3.030	2.63	3.630	3.23	4.230	3.83	4.830
0.24	1.240	0.84	1.840	1.44	2.440	2.04	3.040	2.64	3.640	3.24	4.240	3.84	4.840
0.25	1.250	0.85	1.850	1.45	2.450	2.05	3.050	2.65	3.650	3.25	4.250	3.85	4.850
0.26	1.260	0.86	1.860	1.46	2.460	2.06	3.060	2.66	3.660	3.26	4.260	3.86	4.860
0.27	1.270	0.87	1.870	1.47	2.470	2.07	3.070	2.67	3.670	3.27	4.270	3.87	4.870
0.28	1.280	0.88	1.880	1.48	2.480	2.08	3.080	2.68	3.680	3.28	4.280	3.88	4.880
0.29	1.290	0.89	1.890	1.49	2.490	2.09	3.090	2.69	3.690	3.29	4.290	3.89	4.890

PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL	PERCENT SULFUR	DIFF. PER BBL
0.30	1.300	0.90	1.900	1.50	2.500	2.10	3.100	2.70	3.700	3.30	4.300	3.90	4.900
0.31	1.310	0.91	1.910	1.51	2.510	2.11	3.110	2.71	3.710	3.31	4.310	3.91	4.910
0.32	1.320	0.92	1.920	1.52	2.520	2.12	3.120	2.72	3.720	3.32	4.320	3.92	4.920
0.33	1.330	0.93	1.930	1.53	2.530	2.13	3.130	2.73	3.730	3.33	4.330	3.93	4.930
0.34	1.340	0.94	1.940	1.54	2.540	2.14	3.140	2.74	3.740	3.34	4.340	3.94	4.940
0.35	1.350	0.95	1.950	1.55	2.550	2.15	3.150	2.75	3.750	3.35	4.350	3.95	4.950
0.36	1.360	0.96	1.960	1.56	2.560	2.16	3.160	2.76	3.760	3.36	4.360	3.96	4.960
0.37	1.370	0.97	1.970	1.57	2.570	2.17	3.170	2.77	3.770	3.37	4.370	3.97	4.970
0.38	1.380	0.98	1.980	1.58	2.580	2.18	3.180	2.78	3.780	3.38	4.380	3.98	4.980
0.39	1.390	0.99	1.990	1.59	2.590	2.19	3.190	2.79	3.790	3.39	4.390	3.99	4.990
0.40	1.400	1.00	2.000	1.60	2.600	2.20	3.200	2.80	3.800	3.40	4.400	4.00	5.000
0.41	1.410	1.01	2.010	1.61	2.610	2.21	3.210	2.81	3.810	3.41	4.410		
0.42	1.420	1.02	2.020	1.62	2.620	2.22	3.220	2.82	3.820	3.42	4.420	For Sulfur Values above 4.00%, the differential continues to increase 0.01/BBL per 0.01 Percent Sulfur	
0.43	1.430	1.03	2.030	1.63	2.630	2.23	3.230	2.83	3.830	3.43	4.430		
0.44	1.440	1.04	2.040	1.64	2.640	2.24	3.240	2.84	3.840	3.44	4.440		
0.45	1.450	1.05	2.050	1.65	2.650	2.25	3.250	2.85	3.850	3.45	4.450		
0.46	1.460	1.06	2.060	1.66	2.660	2.26	3.260	2.86	3.860	3.46	4.460		
0.47	1.470	1.07	2.070	1.67	2.670	2.27	3.270	2.87	3.870	3.47	4.470		
0.48	1.480	1.08	2.080	1.68	2.680	2.28	3.280	2.88	3.880	3.48	4.480		
0.49	1.490	1.09	2.090	1.69	2.690	2.29	3.290	2.89	3.890	3.49	4.490		
0.50	1.500	1.10	2.100	1.70	2.700	2.30	3.300	2.90	3.900	3.50	4.500		
0.51	1.510	1.11	2.110	1.71	2.710	2.31	3.310	2.91	3.910	3.51	4.510		
0.52	1.520	1.12	2.120	1.72	2.720	2.32	3.320	2.92	3.920	3.52	4.520		
0.53	1.530	1.13	2.130	1.73	2.730	2.33	3.330	2.93	3.930	3.53	4.530		
0.54	1.540	1.14	2.140	1.74	2.740	2.34	3.340	2.94	3.940	3.54	4.540		
0.55	1.550	1.15	2.150	1.75	2.750	2.35	3.350	2.95	3.950	3.55	4.550		
0.56	1.560	1.16	2.160	1.76	2.760	2.36	3.360	2.96	3.960	3.56	4.560		
0.57	1.570	1.17	2.170	1.77	2.770	2.37	3.370	2.97	3.970	3.57	4.570		
0.58	1.580	1.18	2.180	1.78	2.780	2.38	3.380	2.98	3.980	3.58	4.580		
0.59	1.590	1.19	2.190	1.79	2.790	2.39	3.390	2.99	3.990	3.59	4.590		

SECTION J.D

EXHIBIT D

MATERIAL INSPECTION AND RECEIVING REPORT
DD FORM 250 and DD FORM 250-1

DD FORM 250/250-1

MATERIAL INSPECTION AND RECEIVING REPORT

FORM APPROVED
OMB No. 0704-0248

The public reporting burden for this collection of information is estimated to average 30 minutes per response, including the time for reviewing, instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to Department of Defense, Washington Headquarters Services, Directorate for Information Operations and Reports, (0704-0248), 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-4302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0248).shington, DC 20503. Respondents should be aware that notwithstanding any other provision of law, no person shall be subject to any penalty for failing to comply with a collection of information if it does not display a currently valid OMB control number.

PLEASE DO NOT RETURN YOUR COMPLETED FORM TO EITHER OF THESE ADDRESSES.
SEND THIS FORM IN ACCORDANCE WITH THE INSTRUCTIONS CONTRAINED IN THE DFARS, APPENDIX F-401.

1. PROCUREMENT INSTRUMENT IDENTIFICATION (CONTRACT) NO.	(ORDER) NO.	6. INVOICE NO./DATE	7. PAGE	OF	8. ACCEPTANCE POINT
DOE OWNED CRUDE OIL			1	1	

2. SHIPMENT NO.	3. DATE SHIPPED	4. B/L	5. DISCOUNT TERMS
		TCN	

9. PRIME CONTRACTOR CODE	10. ADMINISTERED BY CODE
Fluor Federal Petroleum Operations 850 S. Clearview Pkwy. New Orleans, LA 70123	DEPARTMENT OF ENERGY STRATEGIC PETROLEUM RESERVE PROJECT MANAGEMENT OFFICE
11 SHIPPED FROM *(If other than 9)* CODE FOB:	12. PAYMENT WILL BE MADE BY CODE
13. SHIPPED TO CODE	14. MARKED FOR CODE

15 ITEM NO.	16. STOCK/PART NO. DESCRIPTION (Indicate number of shipping containers - type of container- container number.)	17. QUANTITY SHIP/REC'D *	18. UNIT	19. UNIT PRICE	20. AMOUNT
	Gross	NET @ 60° F.	BARRELS		

21. CONTRACT QUALITY ASSURANCE

a. ORIGIN

|_| CQA |_| ACCEPTANCE of listed items has been made by me or under my supervision and they conform to contract, except as noted herein or in supporting documents.

DATE | SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

TYPED NAME:
TITLE:
MAILING ADDRESS:

COMMERCIAL TELEPHONE NUMBER:

b. DESTINATION

|_| CQA |_| ACCEPTANCE of listed items has been made by me or under my supervision and they conform to contract, except as noted herein or on supporting documents.

DATE | SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

TYPED NAME:
TITLE:
MAILING ADDRESS:

COMMERCIAL TELEPHONE NUMBER:

22. RECEIVER'S USE

Quantities shown in column 17 were received in apparent good condition except as noted.

DATE RECEIVED | SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

TYPED NAME:
TITLE:
MAILING ADDRESS:

COMMERCIAL TELEPHONE NUMBER:

**If quantity received by the Government is the same as quantity shipped, indicate by (x) mark; if different, enter actual quantity received below quantity shipped and encircle.*

23. CONTRACTOR USE ONLY:

DD FORM 250, AUG 2000 | PREVIOUS EDITION IS OBSOLETE. | *U.S. GPO:1990-0-261-056/0303

TANK/BARGE MATERIAL INSPECTION AND RECEIVING REPORT

FORM APPROVED
OMB No. 0704-0248
Expires Dec 31, 1990

Public reporting burden for this collection of information is estimated to average 35 minutes per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other information, including suggestions for reducing this burden, to Washington Headquarters Services, Directorate for Information Operations and Reports, 1215 Jefferson Davis Highway, Suite 1204, Arlington, VA 22202-4302, and to the Office of Management and Budget, Paperwork Reduction Project (0704-0248), Washington, DC 20503.

PLEASE DO NOT RETURN YOUR COMPLETED FORM TO EITHER OF THESE ADDRESSES.
SEND THIS FORM IN ACCORDANCE WITH THE INSTRUCTIONS CONTAINED IN THE DFARS, APPENDIX F-401.

1. TANKER BARGE ☐ LOADING REPORT ☐ DISCHARGE REPORT	2. INSPECTION OFFICE	3. REPORT NUMBER
4. AGENCY PLACING ORDER ON SHIPPER, CITY, STATE, AND/OR LOCAL ADDRESS (Loading) DOE * 850 S. Clearview Pkwy * New Orleans * LA * 70123	5. DEPARTMENT DOE	6. PRIME CONTRACT OR P.O. NUMBER
7. NAME OF PRIME CONTRACTOR, CITY, STATE AND/OR LOCAL ADDRESS (Loading) * * * *		8. STORAGE CONTACT
9. TERMINAL OR REFINERY SHIPPED FROM, CITY, STATE AND/OR LOCAL ADDRESS (Loading)		10. ORDER NUMBER OR SUPPLIER
11. SHIPPED TO (Receiving, Activity, City, State and/or Local Address) SPR SITE , COVATS Shipment #:		12. B/L NUMBER 13. REQN. OR REQUEST NO. 14. CARGO NUMBER
15. VESSEL	16. DRAFT ARRIVAL FORE AFT	17. DRAFT SAILING FORE AFT
18. PREVIOUS TWO CARGOES FIRST LAST	19. PRIOR INSPECTION	
20. CONDITION OF SHORE PIPELINE	21. APPROPRIATION (Loading)	22. CONTRACT ITEM NO.
23. PRODUCT	24. SPECIFICATIONS	

25. STATEMENT OF QUANTITY	LOADED	DISCHARGED	LOSS/GAIN	PER CENT
BARRELS (42 Gals/Net) NSV				
GALLONS (Net)				
~~TONS (Long)~~ Barrels GSV				

26. STATEMENT OF QUALITY

TEST RESULTS		VESSEL COMPOSITE	TEST RESULTS	THIRD PARTY INSPECTOR VESSEL COMPOSITE
API GRAVITY				
BS&W				
S&W				
SULFUR (WT%)				
RVP				
VISC @ 60 DEG. F				
(CST)				
VISC @ 100 DEG. F				
(CST)				
SALT				
POUR				
TAN				

27. TIME STATEMENT	DATE	TIME

28. REMARKS (Note in detail cause of delays such as repairs, breakdowns, slow operations, stoppage, etc.)

29. COMPANY OR RECEIVING TERMINAL

(Signature)

30. I CERTIFY THAT THE CARGO WAS INSPECTED, ACCEPTED AND LOADED/ DISCHARGED AS INDICATED HEREON.

(Date) (Signature of Authorized Government Representative)

31. I HEREBY CERTIFY THAT THIS TIME STAEMENT IS CORRECT.

(Master or Agent)

DD Form 250-1, NOV 92 (EG)

****Test File Name****

SECTION J.E

EXHIBIT E

CRUDE OIL DELIVERY LOCATION INFORMATION

EXHIBIT E

CRUDE OIL DELIVERY LOCATION INFORMATION

Contact for delivery information

Oil Movements Scheduling

Chuck Costanza
Fluor Federal Petroleum Operations
850 S. Clearview Parkway
New Orleans, LA 70123
Office: 504-734-4733
FAX: 504-818-5733

Alternate: Ned Scheppegrell
Office: 504-734-4604
Cell: 504-722-6146

E-Mail FFPOCOL@SPR.DOE.GOV

(i) Sun Marine Terminal, Nederland, TX

Mike Birkett, Director - Operations (409) 721-4404
Joshua McQueen-Sr. Manager (409) 721-4819
Troy Gayer-Sr. Account Rep, (409) 721-4822
Bill Wheeler, Manager, Nederland Scheduling (409) 721-4813
Control Room (409) 721-4845
Marine Scheduler (409) 721-4812
Pipeline Scheduler (409) 721-4823
Shift Supervisor (409) 720-7972

(ii) Shell Pipeline Company (Shell tie-in @ LCMS and Big Hill)

John McMahon, Oil Movement Scheduler
O(832) 337-8555
C(281) 216-2618
Eric Strodtbeck, Scheduler
O(832) 337-0267
C(281) 416-3946

(iii) Enterprise Products

Scheduling
Andrew Schikal, Director, Onshore Crude Scheduling & Distribution (713) 381-6713
Micah Bedard – Manager, Daily Scheduling (713) 381-4307

Justin Shobe – Supervisor, Daily Scheduling (713) 381-4557
Sam Caplan, Seaway Daily Scheduler (713) 381-4707
Patrick Batts, Seaway Daily Scheduler (713) 381-6865
Kyle Price, Texas City Daily Scheduler (713) 381-6205
Steven Owens, Supervisor, Monthly Distribution (713) 381-4250
Chamesha Randall, Coordinator, Distribution (713) 381-5861

Field Management

Billy Yeung, Area Manager, South Texas/Jones Creek/Freeport/Texas City (713) 852-6005
John Hazley, Superintendent, Operations, Freeport/Texas City (979) 237-6756
Chris Yorgensen, Pipeline Supervisor, Jones Creek (979) 230-7308, Texas City (409) 949-3706
Chase Nelson, Pipeline Supervisor, Texas City (409) 949 3706
Mike Retif, Area Manager, ECHO, Rancho, Eagleford (713) 852-6003

(iv) Exxon Mobil Pipeline

Steve Gluth, Business Development (832) 624-2738 O (224) 343-3560 C

(v) Phillips 66 (Beaumont Terminal) Nederland, TX

Mike Mott, Team Lead, Beaumont Scheduling O(409) 724-3337 C(281) 660-2247
Mark Maxwell, Products Scheduling O(409)724-3288 C(409)724-3209
Johnny Gaw, Crude Pipeline Scheduler O(409)724-3232 C(832) 358-5831
Peggy Smith, Crude Ship Scheduler O(409)724-3232 C(281)235-2936

EXHIBIT E

CRUDE OIL DELIVERY LOCATION INFORMATION (Continued)

(DOE latest information obtained from terminal. Any update must be obtained directly from terminal)

SEAWAY ENTERPRISE FREEPORT TERMINAL

LOCATION: Brazoria County, Texas (three miles southwest of Freeport, Texas on the Old Brazos River, four miles from the sea buoy)

CRUDE OIL STREAMS: Bryan Mound Sweet and Bryan Mound Sour

DELIVERY POINTS: Seaway Terminal marine dock facility number

MARINE DOCK FACILITIES AND VESSEL RESTRICTIONS:

TANKSHIP DOCKS: 2 Docks: The terminal berth complex consists of one finger pier which has two tanker berths: Berth #2 and Berth #3.

MAXIMUM LENGTH

OVERALL (LOA): Docks 2 and 3 - 820 feet (up to 900 feet with pilot approval)

MAXIMUM BEAM: Docks 2 and 3 - 145 feet

MAXIMUM DRAFT

The Brazos Harbor Pilots' "Freeport Harbor Basic Operating Procedures" limits size of vessel entering Freeport harbor. Vessels greater than 820 feet LOA and 145 feet beam are not allowed to enter unless with prior approval of the Brazos Harbor Pilots. The deepest allowable draft is 42 feet. Normally required keel clearance is 3.0 feet. Maximum allowable speed in the channel is 6.0 knots. Vessels in excess of the above limitations may be handled on a "per job" basis if prior approval has been obtained from the Brazos pilots.

BARGE LOADING CAPABILITY:

Fuel Barges are allowed on Berth 1 to supply MDO and HFO for terminal bunkering system. This is arranged by a ConocoPhillips representative.

OILY WASTE RECEPTION FACILITIES:

The terminal is required by US Coast Guard regulations to provide waste reception for oily wastes in connection with the Certificate of Adequacy (COA). At the time of publishing, two mobile waste reception companies provide waste removal services. Any vessel requiring oily waste disposal shall advise the terminal a minimum of (24) twenty-four hours prior arrival at the sea buoy.

EXHIBIT E
CRUDE OIL DELIVERY LOCATION INFORMATION (Continued)

(DOE latest information obtained from terminal. Any update must be obtained directly from terminal)

The terminal, by regulation, is ***not required to provide such services*** if receipt of the ship's original notification is less than twenty-four hours prior arrival. All costs associated with this service shall be for the account of the requesting party, and billed to the party's local agent.

CUSTOMARY ANCHORAGE:

Normal

The Normal anchorage for vessels awaiting clearance to enter the port or for a pilot is 1.5 miles south of the "FP" buoy in approximately 55 feet water depth. Masters should refer to NOAA Displaced Moving Average (DMA) chart #11321 and NOAA United States Coast Pilot (USCP) #5 (Nov. 14, 2021).

Winter

The Safe anchorage for vessels waiting to enter the port in adverse condition is 2.0 miles south of the "FP" buoy.

EXHIBIT E
CRUDE OIL DELIVERY LOCATION INFORMATION (Continued)

(DOE latest information obtained from terminal. Any update must be obtained directly from terminal)

SUNOCO LOGISTICS TERMINAL

LOCATION: Nederland, Texas (on the Neches River at Smiths Bluff in southwest Texas, 34.6 nautical miles from the bar)

CRUDE OIL STREAMS: West Hackberry Sweet and West Hackberry Sour / Big Hill Sweet and Big Hill Sour

DELIVERY POINTS: Sun Terminal marine dock facility and Sun Terminal connections to local commercial pipelines

MARINE DOCK FACILITIES AND VESSEL RESTRICTIONS:

TANKSHIP DOCKS: 5 Docks: Nos. 1, 2, 4 and 5

MAXIMUM LENGTH OVERALL (LOA):

Dock	LOA	Beam	Max DWT	Draft	Air Draft
Ship Dock 1	875'	137'	85,000	40'	136'
Ship Dock 2	1000'	174'	150,000	40'	136'
Ship Dock 4	1000'	174'	150,000	40'	136'
Ship Dock 5	900'	150'	150,000	40'	136'

Sabine Pilot – Daylight Transit Restrictions

LOA	875’
Beam	125’
DWT	85,000

Vessels that meet or exceed these restrictions must transit during daylight hours only.

(DOE latest information obtained from terminal. Any update must be obtained directly from terminal)

BARGE LOADING CAPABILITY:

Dock	LOA	Beam	Max DWT	Draft	Air Draft
A dock	300'	150'	n/a	15'	136'
B dock	300'	150'	n/a	15'	136'
C dock	300'	75'	n/a	15'	136'
#1 dock	875'	137'	n/a	40'	136'
#2 dock	1000'	174'	n/a	40'	136'
Upper anchorage	1000'	150'	150,000	40'	136'
Lower anchorage	1000'	150'	150,000	35'	136'

OILY WASTE RECEPTION FACILITIES:

Oil waste disposal is only allowed via mobile vacuum truck before or after discharge operations and requires the area to be boomed off to contain any potential spills. All disposal operations require 24 hour advance notification and approval from the Duty Foreman.

CUSTOMARY ANCHORAGE:

There is anchorage available South of S.B. Buoy (Lat. 29 deg. 25 min. N., and Long, 93 deg. 40 min. W.) and also at Sabine Bar for (5) vessels with fresh water draft of 36 ft. or less; and short term anchorage for vessels of less than 40 ft. draft in turning basin (2 hrs.) with permission of Sabine Pilots Association. SPMT has available two anchorage location adjacent to the Terminal (known as the "Old River") for two deep draft vessels and barges. The Upper Anchorage located in the northwestern part of the Terminal can accommodate vessels up to 40 ft. draft (MLT) and the Lower Anchorage located in the southern part of the Terminal can accommodate another vessel up to 36 ft. draft (MLT), The Lower Anchorage can also be sued by Tugs and Barges as a waiting area until they are called in to berth at the Terminal, as long as they do not interfere with any vessel in this area. Deep draft vessels are required to make arrangements with the Terminal's Marine Scheduler for use of any of (SPMT's) lay berths off the Island adjacent to the Terminal.

(DOE latest information obtained from terminal. Any update must be obtained directly from terminal)

SHELL Zydeco 22-INCH/DOE LAKE CHARLES PIPELINE CONNECTION

LOCATION: Lake Charles Upper Junction, located in Section 36, Township 10 South, Range 10 West, Calcasieu Parish, (Lake Charles) Louisiana

CRUDE OIL STREAMS: West Hackberry Sweet and West Hackberry Sour

DELIVERY POINT: Shell Zydeco 22-Inch/DOE Lake Charles Pipeline Connection

MARINE DISTRIBUTION FACILITIES: None

EXHIBIT E
CRUDE OIL DELIVERY LOCATION INFORMATION (Continued)

(DOE latest information obtained from terminal. Any update must be obtained directly from terminal)

EMPCo SUGARLAND TERMINAL

LOCATION: The Sugarland Terminal Docks #1 and #2 are located on the right descending bank of the Mississippi River at river mile marker 158.3 in St. James, Louisiana. The physical location is approximately 9 miles south of the Sunshine Bridge, just off of Hwy 18 (River Road). GPS Coordinates: 30 degrees 00' 40" North Latitude 90 degrees 50' 20" West Longitude

CRUDE OIL STREAMS: Bayou Choctaw Sweet and Bayou Choctaw Sour

DELIVERY POINTS: Sugarland Terminal marine dock facility, LOCAP and Capline Terminals (connections to Capline interstate pipeline system and local commercial pipelines), and Plains Pipeline

MARINE DOCK FACILITIES AND VESSEL RESTRICTIONS:

TANKSHIP DOCKS: 2 Docks: Nos. 1 and 2 Vessel criteria

Sugarland	Dock 1	Dock 2
LOA	940'	940'
Deadweight	123,000	123,000
Displacement	104,000	104,000
Draft	35 ft.	40 ft.
Water	Fresh	Fresh
Air Draft	153 ft.	154 ft.

Freeboard: Max water line to cargo manifold distance = 50 feet plus 12 feet at New Orleans gauge (or 60 feet plus 2 feet at New Orleans gauge).

BARGE LOADING CAPABILITY: Dock 1

OILY WASTE RECEPTION FACILITIES:

(DOE latest information obtained from terminal. Any update must be obtained directly from terminal)

EMPCo SUGARLAND TERMINAL

FACILITIES FOR RECEPTION OF DIRTY BALLAST, CARGO SLOPS AND ENGINE-ROOM OILY WASTES:

Terminal does not facilitate nor handle these types of cargoes.

CUSTOMARY ANCHORAGE:

There are various areas of anchorage and waiting areas along the River to St. James. They can be identified through the vessel's agents and river pilots.

EXHIBIT E
CRUDE OIL DELIVERY LOCATION INFORMATION (Continued)

(DOE latest information obtained from terminal. Any update must be obtained directly from terminal)

Phillips 66 BEAUMONT TERMINAL

LOCATION: Beaumont Terminal, located downstream south bank of the Neches River, approximately 8 miles SE of Beaumont, Texas

PETROLEUM STREAMS: Big Hill Sweet and Big Hill Sour

DELIVERY POINTS: Phillips 66 Beaumont Terminal No. 2 Crude Dock and connections to local commercial pipelines

MARINE DOCK FACILITIES AND VESSEL RESTRICTIONS:

TANKSHIP DOCKS: 1 Dock (No. 2)

MAXIMUM LENGTH

OVERALL (LOA): 1,020 feet

MAXIMUM BEAM: 150 feet

MAXIMUM DEADWEIGHT TONS (DWT):

Maximum DWT at Dock No. 2 is 150,000 DWT. Vessels larger than 85,000 DWT, 875 feet LOA, or 125 feet beam are restricted to daylight transit. Maximum DWT is theoretical berth handling capability; however, purchasers are cautioned that varying harbor and channel physical constraints are the controlling factors as to vessel size and they are responsible for confirming that proposed vessels can be accommodated.

BARGE LOADING CAPABILITY: None

OILY WASTE RECEPTION FACILITIES:

Facilities are available for oily bilge water and sludge wastes. Purchasers are responsible for making arrangements with the terminal and for bearing costs associated with such arrangements.

CUSTOMARY ANCHORAGE:

South of Sabine Bar-Buoy. There is an additional anchorage at the Sabine Bar for vessels with draft of 39 feet or less.

SECTION J.F

EXHIBIT F

JONES ACT

EXHIBIT F

Offerors are advised that the requirements of the "Jones Act" must be met for the marine delivery of crude oil delivered in accordance with this Request for Proposal. The Secretary of the Department of Homeland Security has not issued a general ('blanket') waiver of the "Jones Act" requirements related to use of U.S.-flagged vessels for the marine delivery of crude oil being exchanged with the Government in this program. Consequently, if aContractor wishes to request a waiver of such requirements, it is necessary for the Contractor to follow the procedures listed below for submission of a "Jones Act" waiver request.

Prior to seeking a waiver of the "Jones Act" under 46 U.S.C. 501, Contractors should contact the U.S. Maritime Administration (MARAD) to seek information on the availability of U.S.-flag, suitable coastwise-qualified vessels for the transportation of SPR crude oil. In the event that a "Jones Act" waiver is required, and the Contractor submits a request for a waiver, MARAD will provide information to the U.S. Department of Homeland Security regarding the availability of such vessels. If a U.S.-flag, suitable coastwise-qualified vessel is located, and the Contractor uses such vessel for the transportation of SPR crude oil, no waiver is needed.

MARAD can be contacted at:

Deputy Associate Administrator
Office of Cargo & Commercial Sealift
Maritime Administration
U.S. Department of Transportation
1200 New Jersey Avenue, SE
Washington, D.C. 20590
Telephone: (202) 366-4610
Fax: (202) 366-7901

EXHIBIT F continued

And additional information related to domestic shipping is available at:
https://www.maritime.dot.gov/ports/domestic-shipping/domestic-shipping

Unless otherwise specified in the Request for Proposal, a Contractor seeking a waiver of the "Jones Act" should submit a request by letter or electronic means, in accordance with Department of Homeland Security requirements to:

U. S. Customs and Border Protection
Chief/Supervisory Attorney-Advisor
Cargo Security, Carriers and Restricted Merchandise Branch
Regulations and Rulings Directorate
Office of Trade
U.S. Department of Homeland Security
90 K Street, N.E., 10th Floor
Washington, D.C. 20229
Telephone No. (202) 325-0215
Fax: (202) 325-0154

Contractors should identify themselves as a participant in the Government Crude Oil exchange program in this solicitation.

EXHIBIT F continued

Copies of the Jones Act waiver requests should also be sent, as appropriate, to:

(1) Deputy Associate Administrator
Director of Cargo Preference and Domestic Trade
Maritime Administration
U.S. Department of Transportation
1300 New Jersey Avenue, SE
Washington, D.C. 20590
Telephone: (202) 366-4610
Fax: (202) 366-7901

(2) U.S. Department of Energy
Deputy Assistant Secretary for
Petroleum Reserves, FECM-40
1000 Independence Avenue, SW
Washington, D.C. 20585
Telephone: (202) 586-4733
Fax: (202) 586-7919

(3) Contracting Officer, FECM-4451
Strategic Petroleum Reserve Project Management Office
Acquisition and Sales Division
900 Commerce Road East
New Orleans, LA 70123
Telephone: (504) 734-4343
Fax: (504) 818-5343

(4) Office of the Assistant Deputy Under Secretary of Defense (Transportation Policy) OADUSD

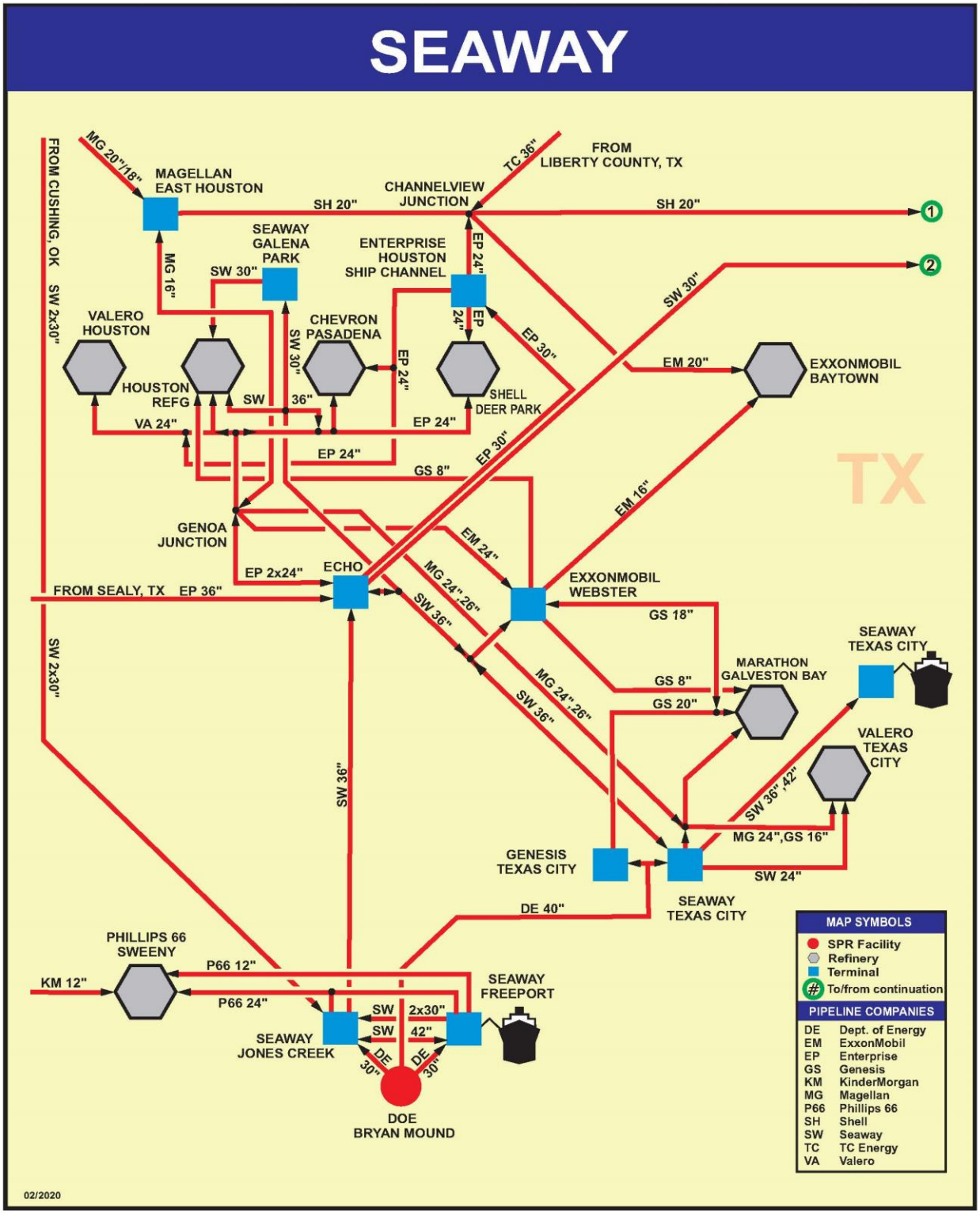
EXHIBIT F continued

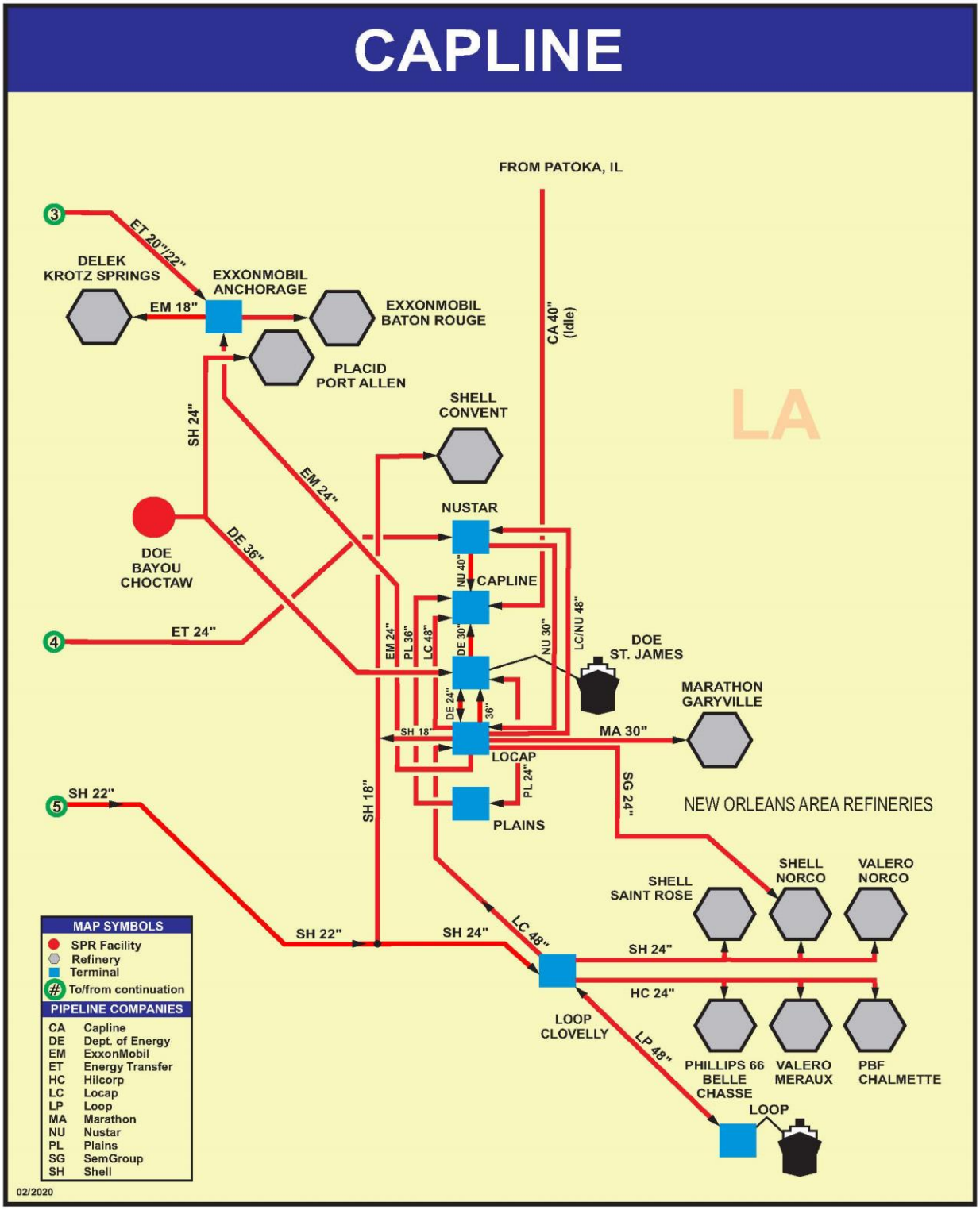
U.S. Department of Defense
3500 Defense Pentagon
Washington, DC 20301-3500
Telephone: (703) 601-4461 x102
Fax: (703) 601-4477

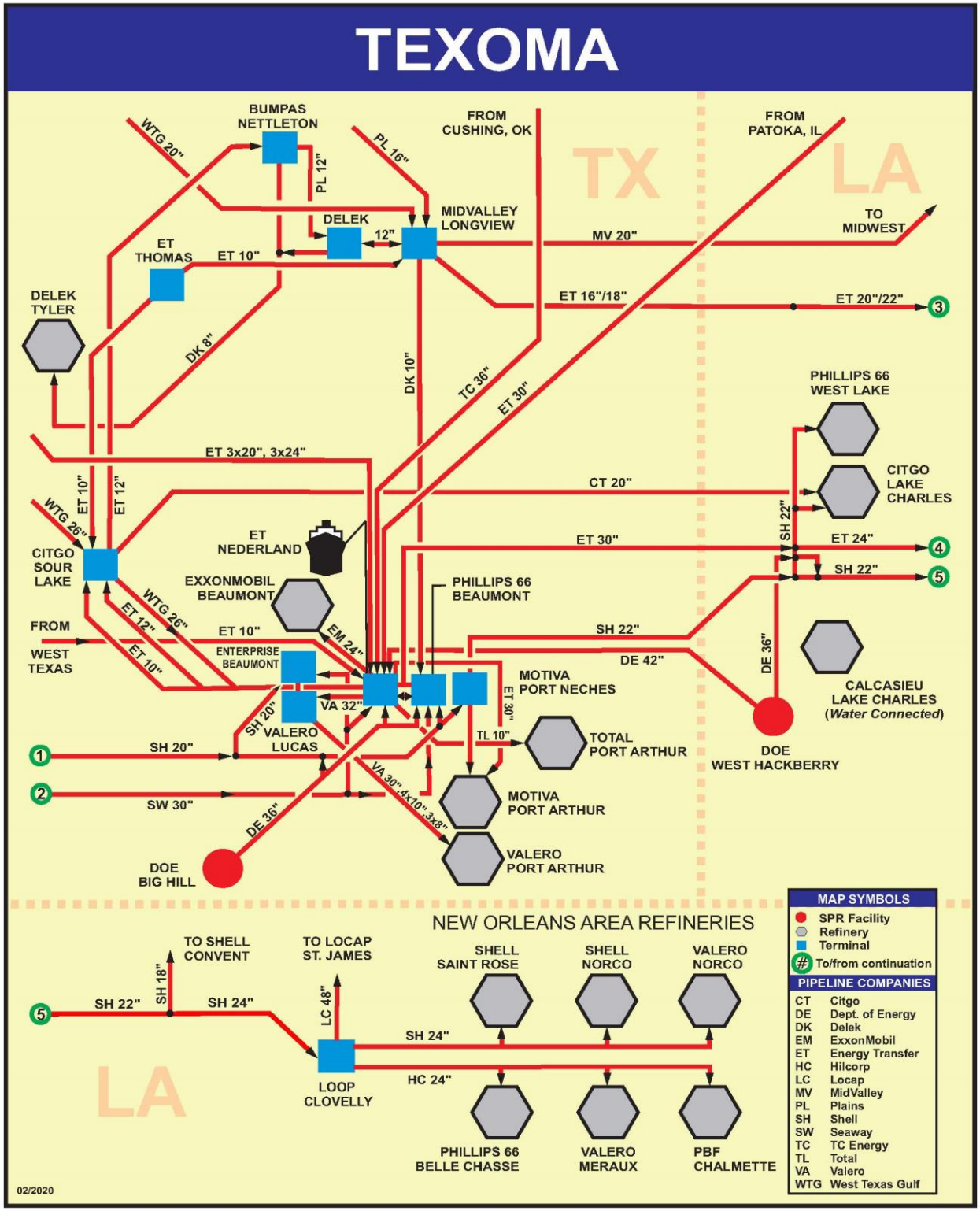
SECTION J.G

EXHIBIT G

DIAGRAMS OF DOE FACILITIES


SEAWAY
FROM CUSHING, OK SW 2x30"
MG 20"/18"
MAGELLAN EAST HOUSTON
SH 20"
CHANNELVIEW JUNCTION
TC 36"
FROM LIBERTY COUNTY, TX
SH 20"
1
2
MG 16"
SEAWAY GALENA PARK
SW 30"
ENTERPRISE HOUSTON SHIP CHANNEL
EP 24"
SW 30"
VALERO HOUSTON
HOUSTON REFG
SW 30"
CHEVRON PASADENA
EP 24"
EP 24"
EP 30"
EM 20"
EXXONMOBIL BAYTOWN
SW
36"
SHELL DEER PARK
VA 24"
EP 24"
EP 24"
EP 30"
GS 8"
TX
EM 16"
GENOA JUNCTION
EM 24"
EP 2x24"
ECHO
MG 24",26"
EXXONMOBIL WEBSTER
FROM SEALY, TX EP 36"
SW 36"
GS 18"
SEAWAY TEXAS CITY
SW 2x30"
MARATHON GALVESTON BAY
GS 8"
MG 24",26"
GS 20"
SW 36"
VALERO TEXAS CITY
SW 36"
SW 36",42"
MG 24",GS 16"
GENESIS TEXAS CITY
SW 24"
SEAWAY TEXAS CITY
DE 40"
PHILLIPS 66 SWEENY
P66 12"
KM 12"
SEAWAY FREEPORT
P66 24"
SW 2x30"
SW 42"
SEAWAY JONES CREEK
DE 30"
DE 30"
DOE BRYAN MOUND
02/2020
MAP SYMBOLS
SPR Facility
Refinery
Terminal
To/from continuation
PIPELINE COMPANIES
DE Dept. of Energy
EM ExxonMobil
EP Enterprise
GS Genesis
KM KinderMorgan
MG Magellan
P66 Phillips 66
SH Shell
SW Seaway
TC TC Energy
VA Valero


CAPLINE
FROM PATOKA, IL
3
ET 20"/22"
DELEK
KROTZ SPRINGS
EXXONMOBIL
ANCHORAGE
EM 18"
EXXONMOBIL
BATON ROUGE
PLACID
PORT ALLEN
CA 40"
(Idle)
SHELL
CONVENT
LA
SH 24"
EM 24"
NUSTAR
DOE
BAYOU
CHOCTAW
DE 36"
NU 40"
CAPLINE
4
ET 24"
EM 24"
PL 36"
LC 48"
DE 30"
NU 30"
LC/NU 48"
DOE
ST. JAMES
MARATHON
GARYVILLE
DE 24"
36"
SH 18"
MA 30"
LOCAP
PL 24"
SG 24"
NEW ORLEANS AREA REFINERIES
5
SH 22"
SH 18"
PLAINS
SHELL
NORCO
VALERO
NORCO
SHELL
SAINT ROSE
SH 22"
SH 24"
LC 48"
SH 24"
HC 24"
LOOP
CLOVELLY
LP 48"
PHILLIPS 66
BELLE
CHASSE
VALERO
MERAUX
PBF
CHALMETTE
LOOP
MAP SYMBOLS
SPR Facility
Refinery
Terminal
To/from continuation
PIPELINE COMPANIES
CA Capline
DE Dept. of Energy
EM ExxonMobil
ET Energy Transfer
HC Hilcorp
LC Locap
LP Loop
MA Marathon
NU Nustar
PL Plains
SG SemGroup
SH Shell
02/2020


TEXOMA
TX
LA
BUMPAS NETTLETON
WTG 20"
PL 12"
PL 16"
FROM CUSHING, OK
FROM PATOKA, IL
DELEK
12"
MIDVALLEY LONGVIEW
MV 20"
TO MIDWEST
ET THOMAS
ET 10"
DELEK TYLER
ET 16"/18"
ET 20"/22"
3
DK 8"
DK 10"
TC 36"
ET 30"
PHILLIPS 66 WEST LAKE
ET 3x20", 3x24"
CT 20"
CITGO LAKE CHARLES
ET 10"
ET 12"
WTG 26"
SH 22"
ET NEDERLAND
ET 30"
ET 24"
4
CITGO SOUR LAKE
EXXONMOBIL BEAUMONT
PHILLIPS 66 BEAUMONT
SH 22"
5
FROM WEST TEXAS
WTG 26"
ET 12"
ET 10"
ENTERPRISE BEAUMONT
EM 24"
SH 22"
DE 42"
DE 36"
CALCASIEU LAKE CHARLES
(Water Connected)
MOTIVA PORT NECHES
ET 30"
VA 32"
SH 20"
VALERO LUCAS
TL 10"
TOTAL PORT ARTHUR
1
SH 20"
DOE WEST HACKBERRY
2
SW 30"
VA 30"-4x10"-3x8"
MOTIVA PORT ARTHUR
DE 36"
VALERO PORT ARTHUR
DOE BIG HILL
NEW ORLEANS AREA REFINERIES
TO SHELL CONVENT
TO LOCAP ST. JAMES
SHELL SAINT ROSE
SHELL NORCO
VALERO NORCO
SH 18"
LC 48"
5
SH 22"
SH 24"
SH 24"
LA
LOOP CLOVELLY
HC 24"
PHILLIPS 66 BELLE CHASSE
VALERO MERAUX
PBF CHALMETTE
02/2020
MAP SYMBOLS
SPR Facility
Refinery
Terminal
To/from continuation
PIPELINE COMPANIES
CT Citgo
DE Dept. of Energy
DK Delek
EM ExxonMobil
ET Energy Transfer
HC Hilcorp
LC Locap
MV MidValley
PL Plains
SH Shell
SW Seaway
TC TC Energy
TL Total
VA Valero
WTG West Texas Gulf

SECTION J.H

EXHIBIT H

SPR Nomination Form

STRATEGIC PETROLEUM RESERVE

NOMINATION - CONFIRMATION

SPR Operations
Fluor Federal Petroleum Operations
New Orleans, Louisiana
FFPOCOL@SPR.DOE.GOV

Scheduler
Chuck Costanza (504) 734-4733
Quantity and Quality
Ned Scheppegrell (504) 722-6146

****The following Information Must Be Provided by the Contractor****

Submission Date: Click here to enter a date.

Submission Type: Original Nomination

Contract No.: Enter Contract Number
Contractor: Enter Contractor Name
Address: Enter Address
City, State, Zip

Contractor Contact Information

Primary Contact: Primary Contact Name
Office: Office Phone
Cell: Cell Phone
Email: Email Address

Alternate: Alternate Contact Name
Office: Office Phone
Cell: Cell Phone
Email: Email Address

CODR/DD250 Contractor Signatory Designee*: Signatory Designee Name

*Designee can be contractor office personnel, 3rd party inspection company†, or chosen loss control representative†.

Office: Office Phone
Cell: Cell Phone
Email: Email Address

Note: If multiple designees are to be used, please input "See Attached" and provide list to FFPOCOL@spr.doe.gov with nomination.

†Third Party Inspection Company Information

Company: 3rd Party Inspection Company
Contact: 3rd Party Contact Name

Contact Ned Scheppegrell for any questions on SPR 3rd party inspection and testing. (See Note at bottom of page)

Nomination Information and Delivery Window (additional lines on following page)

Delivery Window	Pipeline/Vessel	Volume (MB)	SPR Site	Destination
Dates	Choose an item.	Volume	Site	
Dates	Choose an item.	Volume	Site	
Dates	Choose an item.	Volume	Site	
Dates	Choose an item.	Volume	Site	
	Total Volume:	Total Volume		

The Following information to be provided by SPR Operations Personnel

Terminal Information
Terminal: TBD
Contact:
Contact:
Contact:

Custody Transfer Point
TBD
Quality Point
TBD
Quantity Point
TBD

DOE needs to pre-test each cargo prior to receipt, please contact Ned Scheppegrell 504-722-6146, or email Ned.Scheppegrell@spr.doe.gov

Exhibit I

SAMPLE - OFFER GUARANTEE STANDBY LETTER OF CREDIT

BANK LETTERHEAD
IRREVOCABLE STANDBY LETTER OF CREDIT

Date:_____

To: U.S. Department of Energy
Strategic Petroleum Reserve
900 Commerce Road East
New Orleans, LA 70123

Attn: (Mary Roark)

AMOUNT OF LETTER OF CREDIT: U.S. $ _____(_____)
CONTRACTOR: _____
NOTICE OF SALE NO: _____
OFFER NO:_____
LETTER OF CREDIT NO: _____
EXPIRATION DATE: _____
AMERICAN BANKERS ASSOCIATION (ABA) NO: _____

To whom it may concern:

We hereby establish in the U.S. Department of Energy's favor our irrevocable standby Letter of Credit effective immediately for the account of our customer in response to the above U.S. Department of Energy's Notice of Sale, including any amendments thereto, for the sale of Strategic Petroleum Reserve petroleum. This Letter of Credit expires at least 60 calendar days after the date set for receipt of offers.

This letter of credit is available by your draft/s at sight, drawn on us and accompanied by a manually signed statement that the signer is an authorized representative of the Department of Energy, and the following statement:

> **"THIS DRAWING OF U.S. $_____ (_____) AGAINST YOUR LETTER OF CREDIT NUMBERED _____, DATED _____, IS DUE THE U.S. GOVERNMENT BECAUSE OF THE FAILURE OF _(*CONTRACTOR*)_ TO HONOR ITS OFFER TO ENTER INTO A CONTRACT FOR THE PURCHASE OF SPR PETROLEUM FROM THE STRATEGIC PETROLEUM RESERVE, IN ACCORDANCE WITH THE U.S. GOVERNMENT'S NOTICE OF SALE NO. _____, INCLUDING ANY AMENDMENTS THERETO."**

Drafts must be presented for payment on or before the expiration date of this Letter of Credit at our bank. The Government may make multiple drafts against this Letter of Credit.

Upon receipt of the U.S. Department of Energy's demand by hand, mail express delivery, or other means, at our office located at_____, we will honor the demand and make payment, by 3 p.m. Eastern Time of the third business day following receipt of the demand by wire transfer of funds as a deposit to the account of the U.S. Treasury over the Fedwire Funds Service. The information to be included in each transfer will be as provided in the above referenced Notice of Sale.

This Letter of Credit is subject to the Uniform Customs and Practice for Documentary Credits (2007 Revision, International Chamber of Commerce Publication no. 600) and except as may be inconsistent therewith, to the Uniform Commercial Code in effect on the date of issuance of this Letter of Credit in the state in which the issuer's head office within the United States is located.

We hereby agree with you that all drafts drawn under and in compliance with the terms of this Letter of Credit will be duly honored upon presentation and delivery of the above documents for payment at our bank on or before the expiration date.

In the event of a bankruptcy filing by the applicant prior to the expiration date of this letter of credit, the expiration date of this letter of credit will automatically be extended by one hundred twenty (120) calendar days from the expiration date.

Address all communications regarding this Letter of Credit to (name and phone number).

Very truly yours,

_____
(Authorized Signature)

_____
(Typed Name and Title)

INSTRUCTIONS FOR OFFER GUARANTEE LETTER OF CREDIT

1. The depository institution must be an account holder with the Federal Reserve Banking system with permission to send Fedwires and must have Fedwire eligibility Funds status of either Eligible or Eligible – Settlement-only.
2. Letter of Credit must not vary in substance from this attachment. Provide a copy of this attachment to your bank.
3. Banks shall fill in blanks EXCEPT those in the drawing statement**. The drawing statement is in bold print.**
4. The information to be included and format to be used for a wire transfer are noted in Attachment B of this Notice of Sale.
5. Type name and title under authorized signature and provide documentation of authorized signature. REQUEST FOR OFFER GUARANTEE RETURNS

If you elect to have a letter of cancellation returned to you via e-mail only for cancellation of your Offer Letter of Credit, please provide information below:

Send a signed authorization to cancel the Offer LOC to the following point of contact via e-mail address:_____

Contact Phone Number: _____

SAMPLE - PAYMENT AND PERFORMANCE LETTER OF CREDIT
BANK LETTERHEAD
IRREVOCABLE STANDBY LETTER OF CREDIT

Date:_____

To: U.S. Department of Energy
Strategic Petroleum Reserve
900 Commerce Road East
New Orleans, LA 70123
Attn: (Mary Roark)

AMOUNT OF LETTER OF CREDIT: U.S.$_____(_____)

CONTRACTOR:_____

CONTRACT NO:_____

LETTER OF CREDIT NO: _____

EXPIRATION DATE: _____

AMERICAN BANKERS ASSOCIATION (ABA) NO: _____

To whom it may concern:

We hereby establish in the U.S. Department of Energy's favor our irrevocable standby Letter of Credit effective immediately for the account of our customer's above contract with the U.S. Department of Energy for the sale of Strategic Petroleum Reserve petroleum.

This letter of credit is available by your draft/s at sight, drawn on us and accompanied by a manually signed statement that the signer is an authorized representative of the Department of Energy, and one or both of the following statements:

a. **"THIS DRAWING OF U.S. $_____(_____) AGAINST YOUR LETTER OF CREDIT NUMBERED _____, DATED _____, IS DUE THE U.S. GOVERNMENT BECAUSE THE GOVERNMENT HAS DELIVERED SPR PETROLEUM UNDER THE TERMS OF CONTRACT NUMBER _____ , INCLUDING ANY AMENDMENTS THERETO, AND _(*CONTRACTOR*)_ HAS NOT PAID UNDER THE TERMS OF THAT CONTRACT."**

b. **"THIS DRAWING OF U.S. $_____(_____) AGAINST YOUR LETTER OF CREDIT NUMBERED _____, DATED _____, IS DUE THE U.S. GOVERNMENT BECAUSE _(*CONTRACTOR*)_ HAS FAILED TO TAKE DELIVERY OF SPR PETROLEUM UNDER THE TERMS OF CONTRACT NUMBER_____, INCLUDING ANY AMENDMENTS THERETO."**

Drafts must be presented for payment on or before the expiration date of this Letter of Credit at our bank. The Government may make multiple drafts against this Letter of Credit.

Upon receipt of the U.S. Department of Energy's demand by hand, mail express delivery, or other means, at our office located at_____, we will honor the demand and make payment, by 3 p.m. Eastern Time of the third business day following receipt of the demand by wire transfer of funds as a deposit to the account of the U.S. Treasury over the Fedwire Funds Service. The information to be included in each transfer will be as provided in the above referenced contract.

This Letter of Credit is subject to the Uniform Customs and Practice for Documentary Credits (2007 Revision, International Chamber of Commerce Publication no. 600) and except as may be inconsistent therewith, to the Uniform Commercial Code in effect on the date of issuance of this Letter of Credit in the state in which the issuer's head office within the United States is located.

We hereby agree with you that all drafts drawn under and in compliance with the terms of this Letter of Credit will be duly honored upon presentation and delivery of the above documents for payment at our bank on or before the expiration date.

In the event of a bankruptcy filing by the applicant prior to the expiration date of this letter of credit, the expiration date of this letter of credit will automatically be extended by one hundred twenty (120) calendar days from the expiration date.

Address all communications regarding this Letter of Credit to (name and phone number).

Very truly yours,

_____
(Authorized Signature)

_____
(Typed Name and Title)

INSTRUCTIONS FOR PAYMENT AND PERFORMANCE GUARANTEE LETTER OF CREDIT

1. The depository institution must be an account holder with the Federal Reserve Banking system with permission to send Fedwires and must have Fedwire eligibility Funds status of either Eligible or Eligible – Settlement-only.
2. Letter of Credit must not vary in substance from this attachment. Provide a copy of this attachment to your bank.
3. Banks shall fill in blanks EXCEPT those in the drawing statements. **The drawing statements are in bold print.**
4. The information to be included and format to be used for a wire transfer are noted in Attachment B of this Notice of Sale.
5. Type name and title under authorized signature and provide documentation of authorized signature.

CARGO PREFERENCE ACT

Ocean shipments of crude oil for the SPR are generally subject to the requirements of the Cargo Preference Act, as amended, Pub. L. No. 115-232, 46 U.S.C. § 55305(b). The Act provides in pertinent part that:

> When the United States Government procures, contracts for, or otherwise obtains for its own account, or furnishes to or for the account of a foreign country, organization, or persons without provision for reimbursement, any equipment, materials, or commodities, or provides financing in any way with Federal funds for the account of any persons unless otherwise exempted, within or without the United States, or advances funds or credits, or guarantees the convertibility of foreign currencies in connection with the furnishing or obtaining of the equipment, materials, or commodities, the appropriate agencies shall take steps necessary and practicable to ensure that at least 50 percent of the gross tonnage of the equipment, materials, or commodities (computed separately for dry bulk carriers, dry cargo liners, and tankers) which may be transported on ocean vessels is transported on privately-owned commercial vessels of the United States, to the extent those vessels are available at fair and reasonable rates for commercial vessels of the United States, in a manner that will ensure a fair and reasonable participation of commercial vessels of the United States in those cargoes by geographic areas.

Thus, the Cargo Preference Act requires Government to take "steps necessary and practicable to ensure that at least 50 percent" of oil for the SPR that is transported on ocean vessels be transported on United States flag-commercial *(sic)* vessels, if such vessels are available at fair and reasonable rates for United States-flag commercial vessels.

Source: U.S. Department of Justice, Office of Legal Counsel, Office of the Assistant Attorney General, "MEMORANDUM FOR ELIZABETH H. DOLE Secretary of Transportation and DONALD P. HODEL Secretary of Energy, Re: Applicability of the Cargo Preference Act to the Transportation of Alaskan Oil to the Strategic Petroleum Reserve," September 15, 1983.

PART IV – REPRESENTATIONS AND INSTRUCTIONS

SECTION K

REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

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SECTION K

REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

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SECTION K

REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

K.1 OFFEROR REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL ITEMS

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v)) of this provision.

(a) Definitions. As used in this provision-

Covered telecommunications equipment or services has the meaning provided in FAR clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127.102. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the Offeror, or that owns or controls one or more entities that control an immediate owner of the Offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the Offeror, that has direct control of the Offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the special rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in Product and Service Codes (PSCs) 1000-9999 as listed in the GSA Product and Service Code Manual, except-

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology-

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business concern-

(1) Means a small business concern-

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

Small business concern means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR Part 121 and size standards in this solicitation.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.

(b)(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The Offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Items, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs _____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the Offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract will be performed in the United States or its outlying areas. Check all that apply.

(1) Small business concern. The Offeror represents as part of its offer that it ___ is, ___ is not a small business concern.

(2) Veteran-owned small business concern. (Complete only if the Offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The Offeror represents as part of its offer that it ___ is, ___ is not a veteran-owned small business concern.

(3) Service-disabled veteran-owned small business concern. (Complete only if the Offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.) The Offeror represents as part of its offer that it ___ is, ___ is not a service-disabled veteran-owned small business concern.

(4) Small disadvantaged business concern. (Complete only if the Offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The Offeror represents that it ___ is, ___ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(5) Women-owned small business concern. (Complete only if the Offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The Offeror represents that it ___ is, ___ is not a women-owned small business concern.

(6) Women-owned small business (WOSB) concern eligible under the WOSB Program. (Complete only if the Offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.) The Offeror represents that-

(i) It ___ is, ___ is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(6)(i) of this provision is accurate for each WOSB concern eligible under the WOSB Program participating in the joint venture. (The Offeror shall enter the name or names of the WOSB concern eligible under the WOSB Program and other small businesses that are participating in the joint venture: _____.) Each WOSB concern eligible

under the WOSB Program participating in the joint venture shall submit a separate signed copy of the WOSB representation.

(7) Economically disadvantaged women-owned small business (EDWOSB) concern. (Complete only if the Offeror represented itself as a WOSB concern eligible under the WOSB Program in (c)(6) of this provision.) The Offeror represents that-

(i) It ___ is, ___ is not an EDWOSB concern, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(7)(i) of this provision is accurate for each EDWOSB concern participating in the joint venture. (The Offeror shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint venture: _____.) Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.

Note to paragraphs (c)(8) and (9): Complete paragraphs (c)(8) and (9) only if this solicitation is expected to exceed the simplified acquisition threshold.

(8) Women-owned business concern (other than a small business concern). (Complete only if the Offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.) The Offeror represents that it ___ is, ___ is not a women-owned business concern.

(9) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business Offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by Offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:
_____

(10) HUBZone small business concern. (Complete only if the Offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The Offeror represents, as part of its offer, that-

(i) It ____ is, ____ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee

percentage have occurred since it was certified in accordance with 13 CFR Part 126; and

(ii) It ____ is, ____ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126, and the representation in paragraph (c)(10)(i) of this provision is accurate for each HUBZone small business concern participating in the HUBZone joint venture. (The Offeror shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.) Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

(d) Representations required to implement provisions of Executive Order 11246, as amended-

(1) Previous contracts and compliance. The Offeror represents that-

(i) It ___ has, ___ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ___ has, ___ has not filed all required compliance reports.

(2) Affirmative Action Compliance. The Offeror represents that-

(i) It ___ has developed and has on file, ___ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ___ has, ___ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the Offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the Offeror with respect to this contract, the Offeror shall complete and submit, with its offer, OMB Standard Form LLL,

Disclosure of Lobbying Activities, to provide the name of the registrants. The Offeror need not report regularly employed officers or employees of the Offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that for other than COTS items, the Offeror has considered components of unknown origin to have been mined, produced, or manufactured outside the United States. The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products, i.e., an end product that is not a COTS item and does not meet the component test in paragraph (2) of the definition of "domestic end product." The terms "commercially available off-the-shelf (COTS) item," "component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.: _____

Country of Origin:_____

(List as necessary)

(3) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25.

(g)(1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (g)(1)(iii) of this provision, is a domestic end product and that for other than COTS items, the Offeror has considered components of unknown origin to have been mined, produced, or manufactured outside the United States. The terms "Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end

product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act"

Free Trade Agreement Country End Products (Other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No. Country of Origin
_____ _____
_____ _____
_____ _____
(List as necessary)

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products, i.e., an end product that is not a COTS item and does not meet the component test in paragraph (2) of the definition of "domestic end product."

Other Foreign End Products

Line Item No.: _____

Country of Origin:_____

(List as necessary)

(iv) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate I. If Alternate I to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The Offeror certifies that the following supplies are Canadian end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Canadian End Products:

Line Item No._____

_____

_____

(List as necessary)

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The Offeror certifies that the following supplies are Canadian end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Canadian or Israeli End Products:

Line Item No.

_____

_____

_____

Country of Origin

_____

_____

_____

(List as necessary)

(g)(4) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No. Country of Origin

_____ _____
_____ _____
_____ _____
(List as necessary)

(5) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The Offeror certifies that each end product, except those listed in paragraph (g)(5)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The Offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No. _____

Country of origin _____

(List as necessary)

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The Offeror certifies, to the best of its knowledge and belief, that the Offeror and/or any of its principals-

(1) ___ Are, ___ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ___ Have, ___ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: Commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property,

(3) ___ Are, ___ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ___ Have, ___ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds $3,500 for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples. (A) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). (The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).)

(1) Listed end products.

[ ]

[ ]

Listed Countries of Origin

[ ]

[ ]

(2) Certification. (If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the Offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.)

___ (i) The Offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

___ (ii) The Offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The Offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the Offeror certifies that it is not aware of any such use of child labor.

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the Offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ___ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ___ Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards. (Certification by the Offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) (The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.)

(1) [ ] Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The Offeror ___ does ___ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the Offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) [ ] Certain services as described in FAR 22.1003-4(d)(1). The Offeror ___ does ___ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the Offeror (or subcontractor in the case of an exempt subcontract) to the general

public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the Offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the Offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the Offeror if the Offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the Offeror is required to provide this information to SAM to be eligible for award.)

(1) All Offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the Offeror's TIN.

(3) Taxpayer Identification Number (TIN).

[ ] TIN: _____.

[ ] TIN has been applied for.

[ ] TIN is not required because:

[ ] Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

[ ] Offeror is an agency or instrumentality of a foreign government;

[ ] Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

[ ] Sole proprietorship;

[ ] Partnership;

[ ] Corporate entity (not tax-exempt);

[ ] Corporate entity (tax-exempt);

[ ] Government entity (Federal, State, or local);

[ ] Foreign government;

[ ] International organization per 26 CFR 1.6049-4;

[ ] Other _____.

(5) Common parent.

[ ] Offeror is not owned or controlled by a common parent;

[ ] Name and TIN of common parent:

Name _____.

TIN _____.

(m) Restricted business operations in Sudan. By submission of its offer, the Offeror certifies that the Offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations. (1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that-

(i) It ___ is, ___ is not an inverted domestic corporation; and

(ii) It ___ is, ___ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran. (1) The Offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the Offeror-

(i) Represents, to the best of its knowledge and belief, that the Offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the Offeror, or any person owned or controlled by the Offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the Offeror, and any person owned or controlled by the Offeror, does not knowingly engage in any transaction that exceeds $3,500 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The Offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ___ has or ___ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: [ ].

Immediate owner legal name: [(Do not use a 'doing business as' name)].

Is the immediate owner owned or controlled by another entity: [ ] Yes or [ ] No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: [ ].

Highest-level owner legal name: [(Do not use a 'doing business as' name)].

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ___ is not ___ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ___ is not ___ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ___ is or ___ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____ (or mark "Unknown").

Predecessor legal name: _____ (Do not use a "doing business as" name).

(s) (Reserved)

(t) Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require Offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. (Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)). (i) The Offeror (itself or through its immediate owner or highest-level owner) ___ does, ___ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ___ does, ___ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported.

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services-Representation. Section 889(a)(1)(A) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that it [ ] does, [ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

K.2 INFORMATION REGARDING RESPONSIBILITY MATTERS

(a) *Definitions*. As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than $10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror ___ has ___ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the Offeror checked "has" in paragraph (b) of this provision, the Offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is

current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the Offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the Offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in–

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the Offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the Offeror has provided the requested information with regard to each occurrence.

(d) The Offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

K.3

RESERVED

PART IV- REPRESENTATIONS AND INSTRUCTIONS

SECTION L

INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFEROR

PART IV – REPRESENTATIONS AND INSTRUCTIONS

SECTION L

INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFEROR

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SECTION L

INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFEROR

L.1 FALSE STATEMENTS

Offerors must provide full, accurate, and complete information as required by this solicitation and its attachments. The penalty for making false statements is prescribed in 18 U.S.C. 1001.

L.2 AMENDMENTS ISSUED TO THE REQUEST FOR PROPOSAL

(a) Any amendments issued to the Request for Proposal will be posted to the SPR Internet at www.spr.doe.gov. Paper-form copies of amendments will not be provided. **All amendments must be acknowledged in your proposal**.

(b) The only method by which any term of this Request for Proposal may be modified is by formal amendment to the Request for Proposal generated by the issuing office. No other communication made at any scheduled pre-proposal conference or subsequent discussions, whether oral or in writing will modify or supersede the terms of this Request for Proposal.

L.3 RESTRICTION ON DISCLOSURE AND USE OF DATA

An Offeror who includes in its proposal data that it does not want disclosed to the public for any propose or used by the Government except for evaluation proposes, shall;

(a) Mark the title page with the following legend:

"This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part; for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this Offeror as a result of, or in connection with, the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets (insert numbers or other identification of sheets)"; and

(b) Mark each sheet of data it wishes to restrict with the following legend:

"Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal."

L.4 TIME AND DATE PROPOSALS ARE DUE, ELECTRONIC SUBMISSION

(a) Proposal shall be submitted via email to: COVID-19exchange@spr.doe.gov

Submission must be received not later than 10:00 a.m. Central Time on December 6, 2021. Offeror is responsible to verify receipt of proposal.

(b) Proposal submission by any other means is not authorized.

L.5 PROPOSAL PREPARATION INSTRUCTIONS

(a) General

Proposals are expected to conform to the Request for Proposal and be prepared in accordance with this section. To aid in evaluation, proposal shall be clearly and concisely written as well as being neat, indexed (cross-indexed as appropriate), and logically assembled. **Proposal files are to be formatted in Adobe Acrobat PDF and/or Microsoft Word.**

Signed Originals. Submission of electronic proposals will constitute submission of signed copies of the required documents. The name of the authorized company official shall be entered (typed) in the appropriate space shown on the form(s). **You are advised that submission of your proposal in an electronic format is required**.

(b) Proposal Instructions

The proposal shall consist of the actual offer to enter into a contract to provide the desired item. It also includes required representations and certifications and other administrative information.

The proposal shall include the following (in the order listed):

(1) Cover Letter. The cover letter shall include, but not be limited to, the following:

a) The Request for Proposal number.

b) The name, title, and signature of person authorized to sign the proposal (Section J, Exhibit B.) Proposals signed by an agent shall be accompanied by evidence of that agent's authority. This individual must have the authority to commit the Offeror to all the terms and conditions of the resulting contract, fully recognizing that the Government intends to make an award without discussions. Also include Offeror DUNS number.

c) The names, titles, telephone numbers, facsimile numbers, and electronic addresses of persons authorized to represent the Offeror in contractual matters, including negotiations.

d) Acknowledge receipt of any amendments to this Request for Proposal by listing the amendment number(s) and date(s) of issuance.

e) A statement identifying any exceptions or deviations the Offeror is taking to the terms and conditions specified in the contract (Sections A through K of this Request for Proposal). However, exceptions and/or deviations are not sought and the Government is under no obligation to enter into discussions.

Any exceptions taken must obtain sufficient amplification and justification to permit evaluation. The benefit to the Government shall be explained for each exception taken. Such exceptions will not, of themselves, automatically cause an offer to be termed unacceptable. A large number of exceptions, or one or more significant exceptions not providing benefit to the Government, however, may result in rejection of your offer as unacceptable.

(2) Fully executed Contract Form (refer to Section J, Exhibit B). **The offer shall remain valid for 10 calendar days or the validity would terminate on Saturday, Sunday or a U.S. federal holiday. If validity would terminate on Saturday, Sunday or a U.S. federal holiday, the offer shall remain valid until the same time on the next succeeding day which is not a Saturday, Sunday or U.S. federal holiday.**

(3) Completed Offer Form. For each line item in Exhibit A.1 as applicable for which the Offeror submits an offer, the following information shall be provided: (1) DOE SPR site(s), (2) Volume Offered, (3) Period of Delivery from SPR, (4) Period of Return Oil Delivery to SPR (5) Return

Oil Grade Type, (6) API, (7) Sulfur, (8) Delivery mode and (9) Location.

(4) Comprehensive Assay along with Completed Crude Oil Checklist from applicable Exhibit C-1.1. For each line item in Exhibits C-1.1 for which the Offeror submits an offer, the following information shall be provided: (1) API Gravity – Result and Method of Analysis, (2) Sulfur– Result and Method of Analysis, (3) Pour Point– Result and Method of Analysis, (4) Salt– Result and Method of Analysis Content, (5) Viscosity– Result and Method of Analysis, (6) Vapor Pressure– Result and Method of Analysis, (7) Total Acid– Result and Method of Analysis, (8) Water– Result and Method of Analysis, (9) Sediment– Result and Method of Analysis, (10) Naphtha– Result and Method of Analysis, (11) Distillate– Result and Method of Analysis, (12) Gas Oil– Result and Method of Analysis, (13) Residuum– Result and Method of Analysis, (14) Methane C_1– Result and Method of Analysis, (15) Ethane C_2– Result and Method of Analysis, (16) Propane C_3– Result and Method of Analysis, (17) IBP– Result and Method of Analysis

(5) Fully executed Representations and Certifications (Section K).

(6) Offer Guarantee Letter of Credit

a. Each Offeror must submit an acceptable offer guarantee. **Due to COVID-19, an electronic copy of the fully executed Offer Guarantee shall be emailed or efaxed. The e-fax number is (504) 818-5195 or e-mailed to mary.roark@spr.doe.gov AND MUST be received not later than the time/date for receipt of offers. An original hardcopy of the Offer Guarantee is not required for this solicitation.** The offer guarantee must be received at the place and time specified for receipt of offers no later than the time and date set for receipt of offers.

b. An Offeror's failure to submit a timely acceptable guarantee will result in rejection of its offer.

c. The amount of each offer Offer guarantee is the lower of $3 million or 5% of the offer value.

d. Each Offeror must submit an irrevocable standby letter of credit from a U.S. depository institution containing the substantive provisions set out in Section J, Exhibit I, Offer Letter of Credit, all letter of credit costs to be borne by the offeror. If the letter of credit contains any provisions at

variance with Section J, Exhibit I or fails to include any provisions contained in Section J, Exhibit I, nonconforming provisions must be deleted and missing substantive provisions must be added or the letter of credit will not be accepted. The depository institution must be located in and authorized to do business in any state of the United States or the District of Columbia, and authorized to issue letters of credit by the banking laws of the United States or any state of the United States or the District of Columbia. The depository institution must be an account holder with the Federal Reserve Banking system and a participant (on line) in the Fed's Fedwire Deposit System Network funds transfer system. The original letter of credit must be sent to the Contracting Officer. The issuing bank must provide documentation indicating that the person signing the letter of credit is authorized to do so, in the form of corporate minutes, the Authorized Signature List, or the General Resolution of Signature Authority.

e. If the Offeror or bank forwards the letter of credit separately from the offer, the facsimile shall clearly indicate "Offer Letter of Credit (Name of Company)".

f. The Offeror shall be liable for any amount lost by Government due to the difference between the offer and the value of the exchange oil awarded on a subsequent solicitation, and for any additional costs incurred by the Government in the event that the Offeror:

(1) Withdraws its offer prior to time specified in its offer: or

(2) Withdraws its offer after having agreed to extend its acceptance period; or

(3) Having received a notification of award, fails to furnish an acceptable payment and performance standby letter of credit (see Provision M.3) within the time limit specified by the Contracting Officer.

The offer guarantee shall be used toward offsetting such value difference or additional re-exchange costs. Use of the offer guarantee for such recovery shall not preclude recovery by Government of damages in excess of the amount of the offer guarantee caused by such failure of the Offeror.

g. Letters of Credit furnished as offer guarantees must be valid for at least 30 calendar days after the date set for the receipt of offers.

h. If offer(s) are not accepted, the Letters of Credit will be returned upon request after award.

i. If an Offeror defaults on their offer, Government will hold the offer guarantee so that damages can be assessed against it.

L.6 SYSTEM FOR AWARD MANAGEMENT

(a) Definitions. As used in this provision—

"Electronic Funds Transfer (EFT) indicator means a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the commercial, nonprofit, or Government entity to establish additional System for Award Management records for identifying alternative EFT accounts (see subpart 32.11) for the same entity.

"Registered in the System for Award Management (SAM)" means that–

(1) The Offeror has entered all mandatory information, including the unique entity identifier and the EFT indicator, if applicable, the Commercial and Government Entity (CAGE) code, as well as data required by the Federal Funding Accountability and Transparency Act of 2006 (see subpart 4.14) into SAM

(2) The Offeror has completed the Core, Assertions, and Representations and Certifications, and Points of Contact sections of the registration in SAM;

(3) The Government has validated all mandatory data fields, to include validation of the Taxpayer Identification Number (TIN) with the Internal Revenue Service (IRS). The Offeror will be required to provide consent for TIN validation to the Government as a part of the SAM registration process; and

(4) The Government has marked the record "Active".

"Unique entity identifier" means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

(b) (1) An Offeror is required to be registered in SAM when submitting an offer or quotation, and shall continue to be registered until time of award, during performance, and through final payment of any contract, basic agreement, basic ordering agreement, or blanket purchasing agreement resulting from this solicitation.

(2) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address exactly as stated in the offer. The Offeror also shall enter its EFT indicator, if applicable. The unique entity identifier will be used by the Contracting Officer to verify that the Offeror is registered in the SAM.

(c) If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for establishment of the unique entity identifier directly to obtain one. The Offeror should be prepared to provide the following information:

(1) Company legal business name.

(2) Tradestyle, doing business, or other name by which your entity is commonly recognized.

(3) Company physical street address, city, state, and zip code.t

(4) Company mailing address, city, state and zip code (if separate from physical).

(5) Company telephone number.

(6) Date the company was started.

(7) Number of employees at your location.

(8) Chief executive officer/key manager.

(9) Line of business (industry).

(10) Company headquarters name and address (reporting relationship within your entity).

(d) Processing time should be taken into consideration when registering. Offerors who are not registered in SAM should consider applying for registration immediately upon receipt of this solicitation. See https://www.sam.gov for information on registration. (End of provision)

L.7 COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING

(a) *Definition.* As used in this provision –

"Commercial and Government Entity (CAGE) code" means–

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

(b) The Offeror shall enter its CAGE code in its offer with its name and address or otherwise include it prominently in its proposal. The CAGE code entered must be for that name and address. Enter "CAGE" before the number. The CAGE code is required prior to award.

(c) CAGE codes may be obtained via–

(1) Registration in the System for Award Management (SAM) at www.sam.gov. If the Offeror is located in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA Commercial and Government Entity (CAGE) Branch will assign a CAGE code as a part of the SAM registration process. SAM registrants located outside the United States and its outlying areas shall obtain a NCAGE code prior to registration in SAM (see paragraph (c)(3) of this provision).

(2) *The DLA Contractor and Government Entity (CAGE) Branch.* If registration in SAM is not required for the subject procurement, and the Offeror does not otherwise register in SAM, an Offeror located in the United States or its outlying areas may request that a CAGE code be assigned by submitting a request at https://cage.dla.mil.

(3) The appropriate country codification bureau. Entities located outside the United States and its outlying areas may obtain an NCAGE code by contacting the Codification Bureau in the foreign entity's country if that country is a member of NATO or a sponsored nation. NCAGE codes may be obtained from the NSPA at https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx if the foreign entity's country is not a member of NATO or a sponsored nation. Points of contact for codification bureaus, as well as additional information on obtaining NCAGE codes, are available at http://www.nato.int/structur/AC/135/main/links/contacts.htm.

(d) Additional guidance for establishing and maintaining CAGE codes is available at https://cage.dla.mil.

(e) When a CAGE Code is required for the immediate owner and/or the highest-level owner by 52.204-17 or 52.212-3(p), the Offeror shall obtain the respective CAGE Code from that entity to supply the CAGE Code to the Government.

(f) Do not delay submission of the offer pending receipt of a CAGE code.

(End of provision)

PART IV- REPRESENTATIONS AND INSTRUCTIONS

SECTION M

EVALUATION FACTORS FOR AWARD

PART IV- REPRESENTATIONS AND INSTRUCTIONS

SECTION M

EVALUATION FACTORS FOR AWARD

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SECTION M

EVALUATION FACTORS FOR AWARD

M.1 EVALUATION - COMMERCIAL ITEMS

a. The Government will award contract(s) resulting from this Request for Proposal to the responsible Offeror (s) whose offer(s) conforming to the Request for Proposal will be the most advantageous offer to the Government and other factors considered. The following factors shall be used to evaluate offers:

(1) The offer evaluation shall be based on the most advantageous offer to the Government, with the primary factor determining winning bids to be the Contractor who can receive Exchange Oil the soonest followed by highest volume per site as submitted by a conforming bidder on Exhibit A.1.

(2) For purposes of offer evaluation, see B.5(a).

(3) Technical - The Government intends to evaluate offers, as submitted on Offer Form at Section J, Exhibit A.1. Therefore, the Offeror's initial offer should contain the Offeror's best terms from a Volume Offered, Period of Exchange delivery, Period of Return Delivery and technical standpoint (e.g. such as meeting DOE Crude Oil specifications as seen at Section J, Exhibit C for Return Oil grade type). A technical description of the items being offered should be in sufficient detail to evaluate compliance with the requirements in the solicitation.

The Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the best value offer; and waive informalities and minor irregularities in offers received.

b. A written notice of award or acceptance of an offer emailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations

after its receipt, unless a written notice of withdrawal is received before award.

M.2 CONSIDERATION OF OFFERS

a. The DOE shall award contract(s) resulting from this Request for Proposal to those responsible Offeror(s) whose offer(s) conforming to the Request for Proposal shall in the DOE's judgment be the most advantageous offer to the Government. DOE also reserves the right to make multiple awards.

b. The DOE reserves the right to reject any or all offers, to waive any informalities and minor irregularities in an offer, and unless otherwise specified by the Offeror, to accept any one item or group of items in an offer, as may be in the best interest of the DOE.

c. The DOE may award a contract on the basis of initial offer(s) received, without discussions. Accordingly, each initial offer should be submitted on the most favorable terms. However, the DOE reserves the right to conduct discussions with any Offeror if it is later determined by the Contracting Officer to be necessary. In the event the DOE requests best and final offers, a date and time for receipt of such offers shall be set forth in the request. Any best and final offers received after the time and date specified for the receipt of best and final offers shall not be considered unless they are received before award and the late receipt is due solely to mishandling by the Government after receipt at the Government installation.

d. The DOE reserves the right to award a contract for a volume of Exchange Oil that is less than the volume offered as submitted on the Offer Form at Exhibit A, unless the Offeror specifies otherwise in the offer, e.g., all or none. However, in no instance shall DOE award a volume less than 200,000 barrels per line item unless it is in the interest of the DOE. An Offeror may submit multiple offers, but total awards to Offeror will not exceed 10,000,000 barrels.

M.3 EVALUATION PROCEDURE FOR AWARD

a. Offers shall be evaluated based on the most advantageous offer to the Government's crude requirements, determined to be the the Contractor who can receive Exchange Oil the soonest followed by highest volume per site as submitted by a conforming bidder on Exhibit A.1 and in case of a tie, the offer with the later return periodwill be given preference (see B.5) for delivery out of the SPR Site.

b. Submission of offers that include tiered bids will be permitted, however, conditional offers will not be considered.

c. Each offer will be considered on its own merits in comparison with other offers for that specific line item, Contracting Officer will have the authority to select offers based upon what is the most advantageous position to the Government, in Section J, Exhibit A.1.

d. The requirements of the Cargo Preference Act of 1954, as amended, Pub. L. No. 115-232, 46 U.S.C.A. § 55305(b). (See Exhibit J.J), apply to marine vessel deliveries under this program. In order to facilitate and encourage the participation of U.S.-flag commercial vessels in the marine transportation of exchange oil to the Government, preference shall be given to reasonable offers that designate delivery on qualified U.S.-flag vessels. The Government recognizes the increased transportation costs incurred in using U.S.-flag vessels and shall consider such costs in its evaluation of offers. However, this preference does not preclude the award of contracts using foreign-flag vessels.

e. DOE will not release to the general public the identities of the Offerors, or their offer quantities and Premium, until the successful Offerors have been determined. DOE may inform all Offerors and other interested parties of the successful Offerors and their offer data, excluding exchange ratio, by means of a public posting. The posting would occur within two weeks of receipt of offers and may be found at https://www.spr.doe.gov/

f. Payment and Performance Letter of Credit

a. Within five business days after receipt of award, the Purchaser must provide to the Contracting Officer an "Irrevocable Standby Letter of Credit" established in favor of the United States Department of Energy equal to 100 percent of the value of the contracted quantity of the SPR Crude oil at the time of contract award and containing the substantive provisions set out in Exhibit H. **Due to COVID-19, an electronic copy of the fully executed Payment and Performance Guarantee shall be emailed or efaxed. The e-fax number is (504) 818-5195 or e-mailed to mary.roark@spr.doe.gov AND MUST be received not later than the time/date for receipt of offers. An original hardcopy of the Payment and Performance Letter of Credit is not required for this solicitation.** The letter of credit must be issued by a depository institution located in and authorized to do business in any state of the United States or the District of Columbia, and authorized to issue letters of credit by the banking laws of the United States or any state of the United States or the District of

Columbia. The depository institution must be an account holder with the Federal Reserve Banking system and a participant (on line) in the Fed's Fedwire Deposit System Network funds transfer system. Failure to provide the letter of credit shall constitute grounds for termination of contract(s) for default.

b. The letter of credit must be an "Irrevocable Standby Letter of Credit" and MUST NOT VARY IN SUBSTANCE from the sample in Section J, Exhibit I. If the letter of credit contains any provisions at variance with Section J, Exhibit I or fails to include any provisions contained in Section J, Exhibit I, nonconforming provisions must be deleted and missing substantive provisions must be added or the letter of credit will not be accepted. The letter of credit must be effective on or before December 16, 2021, and remain in effect until ninety days after the last delivery of Return Oil to the SPR, must permit multiple partial drawings, and must contain the contract number. The issuing bank must provide documentation indicating that the person signing the letter of credit is authorized to do so, in the form of corporate minutes, the Authorized Signature List, or the General Resolution of Signature Authority.

c. All wire deposit and letter of credit costs will be the responsibility of the Contractor.

d. Within sixty calendar days after the inventory close-out reconciliation, barring any exceptions, (Section B.7), the Contracting Officer shall authorize the cancellation of the letter of credit and shall return it to the bank or financial institution issuing the letter of credit. A copy of the notice of cancellation will be provided to the Contractor. However, the Government reserves the right to require an increase to the value of the Letter of Credit if at any time it becomes insufficient in relation to the remaining quantity and value of Exchange oil to be delivered.